PARTNERS of the AMERICAS
Connect • Serve • Change Lives

Sub-Grant Agreement Modification No. 002
Partners of the Americas
and
Social Accountability International

This modification is made and entered into as of **Feb 27, 2023**, between Partners of the Americas ("Partners"), which is incorporated under the laws of Washington DC and has its principal place of business at 1424 K Street NW, Washington, D.C. 20005, and Social Accountability International ("Sub-awardee").

I. BACKGROUND

A. On October 1, 2021, the parties entered into an agreement with regard to the Sub-awardee's technical assistance to Partners implementing the Mexico Awareness Raising Project, supported by the U.S. Department of Labor.

B. On March 1, 2022, the parties entered into a modification of the sub-award agreement to a.) Increase the total obligated amount from $87,767 USD to $235,844 USD; b.) Change the sub-award point of contact from Michael Midling to Macarena Jimenez, and the programmatic point of contact from Daniela Sepulveda to Alonso Santibanez; and c.) Eliminate the requirement of a bi-annual technical report.

II. PURPOSE & JUSTIFICATION OF MODIFICATION 002

This Modification No. 002is made to reflect the following:

A. Increase the total obligated amount from $235,844.00 USD to 320,844.00 USD.

B. Change the programmatic point of contact from Alonso Santibanez to Ingrid Ceballos.

C. Change the Authorized Technical Representative from Alonso Santibanez to Ingrid Ceballos.

D. Change the due date for the monthly financial reports from the 5th of the month to the 7th of the month.

III. THE TEXT OF THE SUB-AGREEMENT IS MODIFIED AS FOLLOWS:

A. Modification to Article 5. Amount of Award, Estimated Cost and Budget

The total amount of this Award is USD $1,027,276.00 ("Award Amount"); if and when the Sub-Award is fully funded, and is equal to the total estimated cost (TEC) of the award. Amount of the award is subject to the availability of funds provided by the donor. No cost will be paid above the total estimated cost. In the event of termination before expiration of the Period of Performance, in accordance with the terms of this Agreement, POA shall pay all allowable costs accrued by Sub-Awardee as of the date of termination, including non-cancellable obligations.

The amount hereby obligated to this Sub-Award is USD ~~$235,844.00~~ **320,844.00 USD.** This is the total amount available to the Sub-Awardee for implementation of the program described in Annex A. Incremental funding will be allocated if and when additional funding becomes available.

a. The Sub-Awardee shall not exceed and POA is not obligated to pay amounts greater than this obligated amount.

b. The Sub-Awardee should notify POA in writing whenever it has reason to believe that the costs it expects to incur under this Sub-Award in the next 60 days, when added to all costs previously incurred, will exceed 70% of the Total Obligated Amount and/or Estimated Sub-Award Amount specified in this article or as modified thereafter.

B. Modification to Article 30. Project Coordination and Supervision

POA has designed the following as the Program Managers and points of contact for this Sub-Award. This team will serve as the day-to-day liaison between POA and the Sub-Awardee.

For programmatic (including Monitoring and Evaluation)-related matters:

~~**Alonso Santibanez**~~ **Ingrid Ceballos**
~~**Deputy Project Director**~~ **Project Director**
Mobile Phone: +1 202-628-3300
Email: ~~**asantibanez@partners.net**~~ **iceballos@partners.net**

C. Modification to Article 1.G Subaward Data:

Article 1. Subaward Data	
POA Authorized Technical Representative	~~**Alonso Santibanez**~~ **Ingrid Ceballos**

D. Modification to Article 7: Payments and Financial Reports

The Sub-Awardee must submit copies of receipts plus one copy of its detailed expense report (or the Invoice, subject to for-profit entities) electronically to the POA DC office on or before the ~~**fifth (5th)**~~ **seventh (7th)** day of each month.

Article 1. Subaward Data		
A. POA Sub-Award Number	Subaward 24	
B. Sub-Award Project Title	Mexico Awareness Raising Project	
C. Legal Recipient Name, Address, Telephone, and general email	Social Accountability International 9 East 37th Street, 10th floor, New York, New York, 10016 jhwang@sa-intl.org	
D. Recipient Universal Entity Identifier	FBLMJXYJH384	
E. Type of Recipient	U.S. Non Governmental Organization	
F. Sub-Awardee's Authorized Representative	Jane Hwang, CEO & President jhwang@sa-intl.org	
G. POA Authorized Technical Representative	Ingrid Ceballos	
H. POA Authorized Administrative/Contractual Representative	Macarena Jimenez	
I. Period of Performance	Start Date 10 / 01 / 2021	End Date 12 / 31 / 2024
J. Award Amount	$1,027,276.00	Currency: USD
K. Cost Share	$ N/A	Currency: USD
L. Cost Leverage	$ N/A	Currency: USD
M. Total Estimated Sub-Award Amount	$1,027,276.00	Currency: USD
N. Obligated Amount	$320,844 USD	
O. Indirect Cost Methodology	USG de Minimis	
P. Treatment of Program Income	Addition: : Program income is added to the …	

Article 2. Prime Award Information	
A. Prime Award Number	IL-35868-21-75-K
B. Prime Award Name	Mexico Awareness Raising Project
C. Prime Award Date	01/01/2021
D. Prime Award Period of Performance	01-01-2021 - 06-30-2025
E. Authorized Geographic Code	Not Applicable
F. Awarding Entity	U.S. Department of Labor
G. CDFA Number	17.401
H. R&D Award Identification	Not Applicable

All other terms and conditions of the Original Sub-Agreement and any subsequent modifications remain in effect.

The entire agreement is included below the signatures, in its entirety, with all modifications up to and including the modifications from this amendment. For any discrepancy between the below agreement and the modifications indicated above, the changes annotated above shall take precedence.

IN WITNESS WHEREOF, the parties have duly executed this Agreement as of the 03 / 10 / 2023

Partners of the Americas

Macarena Jimenez

Macarena Jimenez
Senior Director, Labor Unit

Social Accountability International

Louis Vanegas

Louis Vanegas
Senior Director

Social Accountability International

Jane Hwang
President & CEO

By the signature above, Sub-Awardee acknowledges and warrants that prior to signing, Sub-Awardee has read this Agreement in its entirety and was afforded reasonable time to consider the Agreement. Specifically, Sub-Awardee understands that this is a contractual Sub-Agreement relationship.

PARTNERS *of the* AMERICAS
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For Internal Use Only
Agreement Approval Cover Sheet

This form is to be filled out with the proper approvals and submitted for ALL agreements. The final approved form should be included with all payment requests in lieu of full agreement.

Requesting Department: CPU Date: 02 / 27 / 2023 Urgent: ☐

Petitioner: Megan Ash

Contractor/Grantor/Grantee* Name: Social Accountability International

* Contractor is vendor, organization or individual receiving agreement

Contractor/Grantor/Grantee Contact Name: Jane Hwang

Financial Obligation Total:

	Price
	$85,000.00

Agreement Dates:
Start: 10 / 01 / 2021
End: 12 / 31 / 2024

Addendum Dates:
Start: 02 / 27 / 2023
End: 12 / 31 / 2024

Current Agreement Purpose:
Increase obligated amount for DOL423 Sub-Award SAI; change authorized technical representative and programmatic contact of sub-award from Alonso Santibanez to Ingrid Ceballos, change deadline for monthly financial report submission from the 5th to the 7th of each month.

Agreement Type: Cost Reimbursable Subaward/Subgrant

Funding sources and % or $ breakdown:
100% DOL423 MX.1.1.C; MX.2.1.C; MX.3.7.C
(List out all sources and breakdown to cover cost of contract)

Has Partners worked with this contractor in the past? Yes ☑ No ☐

Include SharePoint link to Procurement Package: Approved in the proposal

VP or Depart. Director Approval: Macarena Jimenez

Macarena Jimenez
Senior Director, Labor Unit
Name & Title

By signing above, I certify that I have read and understand the terms of this agreement and have appropriate authority to submit this agreement on behalf of my department. I further certify that the agreement is complete and includes all exhibits, attachments and pages.

Contracts Check: ☑ **Compliance Team Check:** ☑

PARTNERS *of the* AMERICAS
Connect • Serve • Change Lives

Mexico Awareness Raising Project

Between

Partners of the Americas
1424 K Street NW Suite 700
Washington DC 20005

And

Social Accountability International
9 East 37th Street; 10th Floor
New York, NY 10016

Under Cooperative Agreement No.: IL-35868-21-75-K
Sub-Award Number: DOL423-2021-01
Sub-Award Type: Cost Reimbursable with Advance
Sub-Award Ceiling: $1,027,762.00 USD
Obligated Sub-Award Amount: $320,844 USD
Effective Date: October 1, 2021
Estimated Completion Date: December 31, 2024
Organization UEI: FBLMJXYJH384

SUB-AGREEMENT
Partners of the Americas, Inc. and
Social Accountability International (SAI)

GENERAL DESCRIPTION AND INTRODUCTION

This Sub-agreement is entered into by and between Partners of the Americas, Inc., located at 1424 K Street NW, Suite 700, Washington, DC 20005, hereinafter referred to as "POA" and **Social Accountability International (SAI)**, located at 9 East 37th Street; 10th Floor New York, NY 10016, hereinafter referred to as "Sub-Awardee". Both together hereinafter referred to as "the Parties."

Introduction

POA has been granted the Mexico Awareness Raising project, funded by the U.S. Department of Labor (USDOL) under award number IL-35868-21-75-K, to strengthen awareness of the Mexican labor justice reform among workers, employers, and union leaders.

The project will aim to achieve the following outcomes:

- Outcome 1: Increase understanding by workers, employers, and union leaders on how to utilize Mexico's new labor systems to protect labor rights and effectively address labor disputes.
- Outcome 2: Build the capacity of the federal and state level Secretariat of Labor and Social Welfare (Secretaría del Trabajo y Prevención Social or STPS) staff and constituents from key institutions to conduct outreach regarding labor rights and implementation of the labor reforms among target audiences.

The Sub-Awardee has been identified through the proposal process as having certain required corporate and technical capabilities necessary to support POA' implementation of the agreement, and POA has determined that it is in their best interest to obtain assistance from Sub-Awardee for the performance of the work/services set forth in the grant agreement with the U.S. Department of Labor (USDOL). The Sub-Awardee, acting as an independent recipient and not as an agent or partner of POA, is willing, able and qualified to perform said work/services upon the terms hereafter provided and based on a work plan to be jointly developed by POA and Sub-Awardee.

The Sub-Awardee has agreed to perform the specified work and/or services as outlined in the program description (Annex A) and based on a work plan to be jointly developed by POA and Sub-Awardee. The Sub-Awardee's program description, incorporated as an Annex to this Sub-Award, shall be treated as a description of the services and underlying cost and related information; it shall not modify any other provision of this Sub-Award.

This Sub-Agreement incorporates all relevant USDOL and U.S. government-wide rules and policies referred to and in any Sub-Award provision in force on the Effective Date. Sub-Awardee shall be automatically bound by any modifications issued by POA to such rules and policies adopted after the Effective Date if, and to the extent that, such modifications are applicable to POA under the Cooperative Agreement.

The provisions of this Sub-Award shall be read together and applied in a consistent manner. In the event of ambiguity or apparent conflict or inconsistency, Sub-Awardee shall notify and obtain guidance from POA before proceeding. If Sub-Awardee fails to do so, it shall be bound by POA' interpretation.

In consideration of the covenants, agreements, representations, warranties, terms, and provisions herein contained, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

POA and the Sub-Awardee agree to the terms of this Sub-Agreement as set forth by the following:

1. Cover page
2. General description and introduction
3. Schedule of Sub-Award
4. Annex A: Program Description and Objectives
5. Annex B: Detailed Budget
6. Annex C: Key Personnel and Terms of Reference (if applicable)
7. Annex D: Programmatic Implementation Schedule, Requirements and Reports
8. Annex E: Report Submission Dates
9. Annex F: POA Standard Provisions
10. Annex G: Other mandatory provisions (USDOL)

SCHEDULE OF SUB-AWARD

ARTICLE 1. Privity

This agreement is funded in whole or in part with funds from USDOL. However, neither USDOL nor any of its departments, agencies, or employees is or will be a party to this agreement or any lower-tier Sub-Agreement. No privity between the USDOL and the Sub-awardee is established by this agreement. The Sub-Awardee shall respect and will not cause to undermine the privity of the agreement between USDOL and POA.

Sub-Awardee has no relationship with USDOL under the terms of this award. Notwithstanding any other term of this award, the Sub-Awardee has no right to submit claims directly to USDOL and USAID assumes no liability for any third-party claims against POA.

ARTICLE 2. Purpose of Agreement

The purpose of this Sub-Agreement is to provide support for the program described in Annex A of this agreement entitled "Program Description and Objectives."

ARTICLE 3. Sub-agreement Type

This Sub-agreement is a standard cost-reimbursable, if and when the Sub-Agreement is fully funded, up to the ceiling of USD $1,027,762.00, for a 39 month period is for the sole purpose of coordinating all aspects of the Mexico Awareness Raising Project. This Sub-Agreement may be modified or extended by mutual agreement of the two parties. Any amendment or modification will be made in writing by POA.

This Sub-Award may be modified or extended by mutual agreement of the two parties. Any amendment or modification will be made in writing by POA, but the Sub-Awardee will not be paid any amount greater than the obligated Sub-Award amount specified in Article 5, unless POA authorized in writing.

ARTICLE 4. Period of Performance

The effective date of this Agreement is October 1, 2021, and the estimated completion date is December 31, 2024 ("Period of Performance").

The services shall be completed and delivered to POA in accordance with the schedule specified in the Programmatic Implementation Schedule, Requirements and Reports (Annex D), approved annual work plans, or as otherwise agreed to in writing by the Parties. Failure to propose and complete work according to a reasonable schedule may be deemed failure to comply with the terms and conditions of the award.

Failure to propose and complete work according to a reasonable schedule may be deemed failure to comply with the terms and conditions of the award.

Activities financed with funds from this Sub-Award shall not commence prior to the start date and must be completed no later than the completion date, unless POA provides approval for extension in writing prior to the specified Sub-Award completion date.

ARTICLE 5. Amount of Award, Estimated Cost and Budget

The total amount of this Award is USD $1,027,762.00 ("Award Amount"); if and when the Sub-Award is fully funded, and is equal to the total estimated cost (TEC) of the award. Amount of the award is subject to the availability of funds provided by the donor. No cost will be paid above the total estimated cost. In the event of termination before expiration of the Period of Performance, in accordance with the terms of this Agreement, POA shall pay all allowable costs accrued by Sub-Awardee as of the date of termination, including non-cancellable obligations.

The amount hereby obligated to this Sub-Award is USD $320,844 USD. This is the total amount available to the Sub-Awardee for implementation of the program described in Annex A. Incremental funding will be allocated if and when additional funding becomes available.

a. The Sub-Awardee shall not exceed and POA is not obligated to pay amounts greater than this obligated amount.
b. The Sub-Awardee should notify POA in writing whenever it has reason to believe that the costs it expects to incur under this Sub-Award in the next 60 days, when added to all costs previously incurred, will exceed 70% of the Total Obligated Amount and/or Estimated Sub-Award Amount specified in this article or as modified thereafter.

This Sub-agreement will be funded in installments, including meeting certain conditions and reporting deadlines, listed in Annex D, Programmatic Implementation Schedule, Requirements and Reports.

Any unspent money at the end of the project should be reimbursed to POA .

The detail of the total estimated cost has been provided in the budget of this Sub-Agreement and as attached in Annex B "Detailed Budget".

BUDGET

The following is the Sub-Agreement Budget.

a. Revisions to this budget shall be made in accordance with USDOL Award Provisions, Budget requirements and 2 CFR 200.308.
b. Sub-Awardee is required to report deviations from the budget. POA' approval is required to authorize the Sub-Awardee to reassign funds under the Sub-Agreement budget line item. Whenever the amount of Federal funds authorized in this Sub-Agreement is expected to exceed the requirements of the

project, as outlined in the approved proposal, by more than ten (10) percent of the award amount, the Sub-Awardee will promptly notify the POA Program Manager. In any case all changes between budget categories must to be informed to POA.

c. The Sub-Awardee shall submit to the POA Program Manager for prior approval the proposed budget for any monetary agreement with a flow down of programmatic responsibility to a sub-recipient.
d. Consultant agreements are considered sub-contracts for the purposes of this award. In the event that new consultants proposed are not included in the original budget, the Sub-Awardee must submit a justification and request POA Program Manager approval for any consultant.
e. In the event that new personnel proposed are not included in the original approved budget, the Sub-Awardee must submit a justification and request POA Program Manager approval for any personnel.

Categories	**Amount**	**Cost Share**	**Total**
1. Outcome 1	$571,098	$0	$571,098
2. Outcome 2	$322,640	$0	$322,640
3. M&E	$40,591	$0	$40,591
4. Total Direct Costs	**$934,329**	**$0**	**$934,329**
5. Indirect Costs	$93,433	$0	$93,433
6. Total Costs	**$1,027,762**	**$0**	**$1,027,762**

ARTICLE 6. Allowable Costs

Government-wide cost principles.

The allowability of costs incurred by the Sub-Awardee, and any cost type contractors will be determined in accordance with the Federal cost principles applicable to the organization. POA requires full support documentation, including receipts for all expenses over $25, to be provided by the Sub-Awardee to justify costs for all type of expenses as approved in the budget.

General rule on allowability of costs.

The Sub-Awardee may use funds under the award, including the USDOL funds and any required cost sharing or matching contributions, only for:

a. allowable costs incurred by the recipients, any sub-recipients, or cost-type contractors; and
b. reasonable fees or profit to cost-type contractors but not any fee or profit (or other increment above allowable costs) to the recipient or any sub-recipients.

Allowability of costs shall be determined in accordance with the cost principles applicable to the entity incurring the costs. Refer to the OMB Circulars to obtain listing of allowable costs, or visit the website address

at: https://www.ecfr.gov/cgi-bin/text-idx?SID=5716a444c9b48d5a385290103fe78b37&mc=true&node=pt2.1.200&rgn=div5

Sub-Awardee may charge to POA only allowable costs incurred during the period of performance of this award. All costs incurred by Sub-Awardee before the start date of this award are not authorized and are at the recipient's risk.

Sub-Awardee shall promptly reimburse POA for any and all costs that are reimbursed to Sub-Awardee by POA but are subsequently disallowed by POA, USDOL, or the Sub-Awardee's designated auditor.

ARTICLE 7. Payments and Financial Reports

The Sub-Awardee may receive advance payment for estimated costs, which cannot exceed award amount.

The Sub-Awardee agrees to ensure that all funds provided are expended for the purpose and in accordance with the terms and conditions of this Sub-Agreement.

Sub-Awardee may be paid in advance, provided the following requirements are met:

1. Maintain written procedures that minimize the time elapsing between the transfer of funds and disbursement by the Sub-Awardee, and
2. Financial management systems that meet the standards of fund control and accountability as established in 2 CFR 200 and 600,
3. The Sub-Awardee will be authorized to submit requests for advances and reimbursements monthly.
4. The advances will be limited to the minimum amounts needed and be timed to be in accordance with the actual, immediate cash requirements of the Sub-Awardee in carrying out the purpose of the approved program or project.
5. The timing and amount of cash advances shall be as close as is administratively feasible to the actual disbursements by the Sub-Awardee.

Further requests for advance payment from POA must be submitted along with the monthly financial report for the then-current month and be accompanied by a projection of expenses for the two subsequent months. All cash advances to the Sub-Awardee will be limited to the minimum amount needed and will be timed to be in accordance with the sub-recipient's actual, immediate needs for cash to carry out the purpose of the approved program or project.

Liquidation of periodic advance. The Sub-Awardee must submit copies of receipts plus one copy of its detailed expense report (or the Invoice, subject to for-profit entities) electronically to the POA DC office on or before the seventh (7th) day of each month.

To report all revenues and expenditures, POA will require a monthly average exchange rate. Proof of exchange rate must be submitted to POA with the monthly financial report.

Evidence of the exchange rate during the period can be provided from OANDA: http://www.oanda.com/. The rate is then applied to every expense in the month regardless of the exact day of expenditure. Annually, in December POA will allow for a gain/loss on exchange rate to be calculated.

When this Sub-Award expires, the Sub-Awardee must immediately return all unexpended funds that POA has advanced to the Sub-Awardee, unless such advanced funds have already been spent or committed in a legally binding transaction during the period of this Sub-Award or are required for approved closeout costs.

Once received, the Sub-Awardee expense submissions will be reviewed for approval and certification by POA within 10 business days. The Sub-Awardee will be advanced for services directed by POA in accordance with its normal business practice, and after the liquidation of the previous month's advance is fully completed. POA will advance the Sub-Awardee's estimated projected costs within 30 days of receiving the previous month's expense report (or an Invoice) from the Sub-Awardee.

All payments made by POA to the Sub-Awardee are subject to an audit or attestation by POA and USDOL. The Sub-Awardee agrees to refund promptly to POA any payments by POA that are suspended or disallowed. In case of delinquent financial reporting on advances, POA reserves the right to stop providing subsequent advance requests.

POA will provide guidance to the terms of financial reporting. As minimum on a monthly basis the Sub-Awardee will submit the Cash Request form along with the Financial Report form and Detailed Expense report. The guidance will be provided by the POA' Program Manager.

If advance mechanism is not approved, POA will reimburse Sub-Awardee on a monthly basis. The Sub-Awardee must submit a monthly expense report (or the Invoice) along with copies of all the receipts and other supporting documentation as requested by POA CFO. POA will process requests for reimbursement within thirty (30) days of receiving the requests.

EXPENSE CERTIFICATION

Each expense report shall contain the following certification, signed by the authorized official of the Sub-Awardee:

"I hereby certify that all costs charged are reasonable, allowable and necessary for the performance of this Sub-agreement; and the expenditures, disbursements and cash receipts are for the purpose and objectives set forth in the terms and conditions of this award, and are verifiable from the organization's accounting records. All required POA approvals have been obtained; and that an appropriate refund shall be made to POA promptly upon request if the Project Manager determines that any amount previously paid was not properly payable."
BY (Signature): NAME: TITLE: DATE:

ARTICLE 8. Backup Documentation
The original expense report (or an Invoice) shall be in the format approved by POA. The expense report must have agreement number on it. The Sub-Awardee shall retain copies of the following backup documentation that POA may review as required:

a. Copies of Timesheets or Level of Effort Statements for all staff being billed in the period covered by the Invoice, or any other records that accurately reflect the work performed under this agreement, will be made available upon request.

b. Files that support work contracts, short-term technical assistance (STTAs), contracts, agreements, purchase orders, and in general all the documentation that support any kind expenses under the approved budget will be made available upon request.
c. All other direct reimbursable costs greater than USD $25 including travel, transportation, allowances, communications, reproduction, must be supported by itemized bills, invoices, or receipts.
d. Copies of receipts need to be submitted on a monthly basis.

POA will make a reduction for any disallowance or indebtedness by the Sub-Awardee by applying the proceeds of the Invoice first to such deductions and next to any unliquidated balance of advance, if any, remaining under this Sub-Agreement.

Records Retention
The Sub-Awardee must maintain financial and program records that pertain to this Sub-Award in accordance with 2 CFR 200.333 and for a period of three years from the End Date of the Prime Cooperative Agreement or more if dictated by local law. POA, the Federal awarding agency, Inspectors General, the Comptroller General of the United States, or any of their authorized representatives, have the right of access to any documents, papers, or other records of the Sub-Awardee which are pertinent to the Federal Sub-Award, in order to make audits, attestations, examinations, excerpts, and transcripts. The right also includes timely and reasonable access to the Sub-Award's personnel for the purpose of interview and discussion related to such documents. The rights of access in this section are not limited to the required retention period but last as long as the records are retained.

Annual Audits and Attestation
The Sub-Award's annual audits must be conducted in accordance with the 2 CFR 200 Subpart F Audit Requirements and the Standard Mandatory Provisions of this agreement. If the Sub-Awardee is not required to report on the Federal Audit Clearinghouse, the Sub-Awardee must make a copy available to POA of its annual audit within the earlier of 30 calendar days after receipt of the auditor's report(s), or nine months after the end of the audit period. The audit should contain all the elements specified in the reporting package in 2 CFR 200.512 (c). Sub-Awardee must ensure that their respective parts of the reporting package do not include protected personally identifiable information.

USDOL and POA reserves the right to require attestation engagements or project specific audits to supplement the coverage provided by the annual single audits that recipients are required to arrange, which are referenced in the preceding section. All SUB-AWARDEEs, are subject to attestation engagements or project-specific audits at USDOL's expense during the cooperative agreement period and must cooperate if selected for examination.

ARTICLE 9. Program Income

Program income generated out of the activities covered under this agreement shall be used in the following manner: Added to funds committed by POA and the recipient to the program, and used to further eligible program objective.

Sub-Awardee must make an audit statement available to POA every year.

ARTICLE 10. Final Payment and Closeout Procedures

SUB-AWARDEE final financial report shall be submitted promptly following completion of the period of performance and the attainment of results specified under this Sub-agreement, but in no event later than forty-five (45) days. Final payment will not be disbursed until all requirements are submitted and approved by the POA Program Manager and finance office.

Closeout requirements include:

a. Completion of all required programmatic reports and documents per the Program Description and Objectives;
b. Submission of all required Financial Reports and documents;
c. Final inventory list for items with a current fair market-value of USD $100 or more;
d. Disposition Plan for all items with a current fair market value of $5,000 or more; and
e. Signed Sub-Agreement close-out letter; and
f. Ensure that Sub-Awardee are aware of the documentation they must maintain and for how long (typically three years after submission of the final report).

The closeout plan, including the schedule and activities related with, will be submitted at least 120 days prior to the end date.

No later than 90 days before completion of this Sub-agreement, the SUB-AWARDEE must submit the following information to POA, consistent with the regulations applicable to Property Standards at 2 CFR 200.310-316:

- Government Property Inventory Disposition List for all real property, equipment, and intangible property purchased with project funds. The List should include current fair market value and the proposed disposition. POA will provide SUB-AWARDEE with the template.
- Inventory list of supplies, if unused supplies exceed USD 5,000 in total aggregate value at the time of closeout.

POA will provide final disposition instructions regarding the final disposition of any real property and equipment with a fair market value greater than $5,000. The SUB-AWARDEE is responsible for disposal of all other real property and equipment in a way that best serves to sustain the goals of the project.

ARTICLE 11. Reporting and Evaluation

Sub-Awardee shall submit electronic versions of the deliverables or outputs outlined in Annex D to the POA Program Manager by the dates specified in the Annex.

ARTICLE 12. Title to and Care of Project Property

For the purposes of this article, property means equipment, supplies, real property, and intangible property, each defined individually below, financed under this Sub-Award or furnished by POA. Equipment means tangible nonexpendable personal property having a useful life of more than one year, and an acquisition cost of $5,000 or more per unit. However, consistent with the Sub-Awardee's policy, lower limits may be established.

Title to all equipment acquired under this sub-award shall vest with POA upon completion of the grant. "Equipment" means an article of nonexpendable, tangible personal property having a useful life of more than one year and an acquisition cost $5,000 or more. Annually, concurrent with submission of the annual performance report, the Sub-awardee shall submit an inventory detail of all equipment purchased under the grant which shall include a description of the good, acquisition cost and date, serial number, condition, and location of the item as well as any inventory number used by the Sub-awardee to identify the item. Within 120 days of completion, the Sub-awardee must submit a final inventory list along with a disposition request for all items with a current fair market value of $5,000 or more. POA will review such request and provide final inventory dispositions instructions to the Sub-awardee. All inventory reports and requests should be submitted to POA Program Manager.

The Sub-Awardee is responsible for the care, maintenance, and security of the equipment or property purchased under this Sub-Award. The Sub-Awardee is required to immediately report theft, loss, or damage to Sub-Award funded equipment or property to POA.

ARTICLE 13. Involvement Understanding

The following provisions constitute POA' involvement in the Sub-Awardee's activities in order to assure that program requirements are met and that mutual program objectives are achieved.

POA shall be responsible for:

(a) Approval of all activities planning;
(b) Approval of work plan;
(c) Approval of change of key personnel;
(d) Approval of report outlines and report drafts;
(e) Approval of print or electronic publications; and
(f) Approval for programmatic redirection. In this context, redirection may occur due to interrelationship with other Activities sponsored by the U.S. Government or other donors and to ensure coordination and complementary, avoid duplication of efforts, and/or support U.S. foreign policy considerations.

ARTICLE 14. Project Coordination

POA will designate the Project Director to serve as the day-to-day liaison between POA and the Sub-Awardee. The POA Project Director is authorized to issue technical directions under the Sub-Award on behalf of POA. Such directions may include instructions to Sub-Awardee that provide details to support the completion of the Statement of Work.

The Sub-Awardee will designate a Follow-On Coordinator. This person will serve as the day-to-day liaison between POA, Sub-Awardee, and the Implementing Organizations.

ARTICLE 15. Key Personnel

There are no Sub-Awardee key personnel included in this agreement. Key Personnel specific Terms of Reference (if applicable) are included in Annex C. The list of key personnel may be amended by a written modification to this sub-award, and USDOL approval (if necessary), to either add or delete personnel as appropriate.

ARTICLE 16. Programmatic Implementation Schedule, Requirements and Reports

The Sub-Awardee is responsible for the oversight of all Project implementation according to the schedule, requirements and reports. The Schedules, Requirements, and Reports are outlined in Annex D.

ARTICLE 17. Changes to Sub-Agreement

Any proposed changes to the sub-award will be submitted in writing and will be approved by, and executed by, the parties to this sub-award before performance of work involved in the change may begin.

The terms and conditions of this Sub-Award, including all incorporated Mandatory and Required as Applicable Standard Provisions, may only be modified by in writing, and signed by the authorized party on behalf of POA in the case of a unilateral amendment and by both the authorized POA Party and the Sub-Awardee in the case of a bilateral amendment.

ARTICLE 18. Assignment of Claims

The Sub-Awardee shall obtain the approval of POA' Program Manager prior to making any assignment related to this sub grant to non-Sub-Awardee key personnel, including consultants.

ARTICLE 19. Delays

Whenever the Sub-Awardee knows or reasonably should know that any actual or potential condition is delaying or threatens to delay the timely performance of the work, the Sub-Awardee shall give POA written notice thereof, including all relevant information with respect thereto.

ARTICLE 20. Organizational Conflicts of Interest

a. The Sub-Awardee warrants that, to the best of Sub-Awardees knowledge and belief, there are no relevant facts or circumstances which could give rise to an organizational conflict of interest, or that the Sub-Awardee has disclosed all such relevant information.
b. The Sub-Awardee agrees that if an actual or potential organizational conflict of interest is discovered after the grant of this Sub-agreement that the Sub-Awardee will make a full disclosure in writing to POA' Chief Financial Officer (CFO). Disclosure shall include a description of actions which the Sub-Awardee has taken or proposes to take, after consultation with the POA Sub-agreement Program Manager, to avoid, mitigate, or neutralize the actual or potential conflict.
c. POA may terminate this Sub-agreement for convenience, in whole or in part, if it deems such termination necessary to avoid an organizational conflict of interest. If Sub-Awardee was aware of a potential organizational conflict of interest prior to grant or discovered an actual or potential conflict after grant and did not disclose or misrepresented relevant information to POA' CFO, POA may terminate the Sub-agreement for default, or pursue such other remedies as may be permitted by law or this Sub-agreement.
d. The Sub-Awardee further agrees to insert in any lower-tier Sub-agreement or consultant agreement hereunder, provisions which shall conform substantially to the language of this clause, including this paragraph (d).

ARTICLE 21. Validity and Waiver

The invalidity in whole or in part of any provision of this Sub-agreement shall not affect the validity of other provisions. A waiver of a breach of any provision of this Sub-agreement shall not constitute a waiver of any subsequent breach of that provision or a breach of any other provision of this Sub-agreement. The failure of POA to enforce at any time or from time to time any provision of this Sub-agreement shall not be construed as a waiver thereof.

ARTICLE 22. Applicable Laws
Insofar as this Sub-agreement is not governed by Federal law and the regulations required thereby, or incorporated by reference, this Sub-agreement shall be construed and interpreted solely in accordance with the laws of the District of Columbia.

ARTICLE 23. Scope of Sub-agreement
This Sub-agreement, along with attached exhibits, properly executed modifications, and documents expressly incorporated by reference, represent the entire agreement between the parties and supersede all prior written or oral statements or agreements. An extension of this agreement may be negotiated based on available funding and the agreement of each of the two parties and USDOL approval, if necessary.

ARTICLE 24. Cost Share (If applicable)
a. During the period of this award, the recipient agrees to spend an amount of funds from non-U.S. Government sources specified as Cost Share, as provided in the award budget. Any Cost Share restrictions contained in the award budget take precedence over the terms of this provision.

b. The recipient's Cost Share under this award may include project costs incurred by the recipient from its own funds, or project costs financed with cash, services, or property contributed or donated to the recipient from other non-U.S. Government sources, including Sub-awardees. Not all Cost Share requires cash outlays by the recipient; examples are depreciation and use charges for buildings and equipment.

c. The recipient's Cost Share contributions, both cash and in-kind, must meet all of the following criteria:

1. Are verifiable from the recipient's records;
2. Are not included as cost share contributions for any other U.S. Government (USG)-assisted program;
3. Are necessary and reasonable for proper and efficient accomplishment of this award's objectives;
4. Are allowable under the Standard Provision, "Allowable Costs";
5. Are not unallowable, as per the Standard Provision, "Unallowable Costs";
6. Are not paid by the USG under another grant or agreement (unless the grant or agreement is authorized to be used for Cost Share); and
7. Are included in the approved budget.

d. The source, nationality, and restricted goods requirements do not apply to cost share expenditures. The value of non-U.S. Government in-kind contributions applied to Cost Share is established by the following procedures:

1. Volunteer services must be an integral and necessary part of an approved program. Rates for volunteers must be consistent with those paid for similar work in the recipient's organization, or consistent with those paid for similar work in the labor market in which the recipient competes. Volunteer services furnished by others must be valued at the employee's regular rate of pay, exclusive

of overhead costs, provided these services are of the same skill for which the employee is normally paid. In any case, paid fringe benefits that are reasonable, allowable, and allocable may be included in the valuation.

2. The assessed value of donated supplies and equipment must be reasonable and must not exceed the fair market value of the property at the time of the donation.
3. The value of donated property must be determined in accordance with the usual accounting policies of the recipient with the following qualifications:
    1. If the purpose of this award is to assist the recipient in the acquisition of equipment, buildings, or land, the total value of the donated property may be claimed as Cost Share.
    2. If the purpose of this award is to support activities that require the use of equipment, buildings, or land, normally only depreciation or use charges for equipment and buildings may be made. However, the USG Agreement Officer (AO) may approve the charge of the full value of equipment or other capital assets and fair rental charges for land.
    3. The value of donated land and buildings must not exceed its fair market value at the time of donation to the recipient as established by an independent appraiser.
    4. The value of donated equipment must not exceed the fair market value of equipment of the same age and condition at the time of donation.
    5. The value of donated space must not exceed the fair rental value of comparable space and facilities in a privately owned building in the same locality, as determined by adequate market research.
    6. The value of loaned equipment must not exceed its fair rental value.

e. The recipient must provide supporting records for in-kind contributions from third parties.

1. Volunteer services must be documented and, to the extent feasible, supported by the same methods used by the recipient for its employees.
2. The basis for determining the valuation for personal services, material, equipment, buildings, and land must be documented.

f. If the recipient expends less than the agreed upon Cost Share as specified in this award, the AO may apply the difference to reduce the amount of USDOL funding for the following funding period, require the recipient to refund the difference to USDOL when this award expires or is terminated, or reduce the amount of cost share required under the award.

g. In the event of any disallowance of expenditures from USDOL award funds, the recipient may substitute expenditures made with funds provided from non-U.S. Government sources, provided they are eligible in accordance with all the Standard Provisions of this award.

ARTICLE 25. Resolution of Conflicts

Conflicts between any of the Attachments of this sub-award shall be resolved by applying the following descending order of precedence:

a. Applicable appropriations
b. Applicable federal statutes and regulations
c. The terms and conditions of this Sub-Award, including Annexes A, B, C, D, and E
d. Most recent USDOL Management Procedures and Guidelines (MPG)
e. Annex F: POA Standard Provisions

ARTICLE 26. Suspension

The Sub-Agreement may be suspended in whole or in part, at any time or from time to time:

1. by mutual agreement;

2. by POA decision in response to USDOL termination, suspension, or other limitation of POA' funding; or
3. for Sub-Awardee's default or substantial non-compliance with the requirements of the Sub-Agreement. In each case, written notice will be issued stating the effective date of the action and what funds, if any, will be available to support expenditures after such date.

The Corrective period shall be effected by written notice to the Sub-Awardee, which notice shall identify the basis for possible termination, the reason(s), therefore, the effective date of the action, a statement identifying which part (or all) of the remainder of the Sub-Agreement Term or the program activities subject to possible termination, and procedures and standards, as appropriate, for phasedown costs and submission of final invoices. The notice shall be effective on the date stated in the notice, or the date the notice is delivered to Sub-Awardee, whichever is later.

The Sub-Awardee shall have thirty (30) days to correct all issues as identified in the notice, failing such deadline POA may terminate the Sub-Agreement in whole or part effective on such date.

ARTICLE 27. Termination
In addition to the requirements in Annex F, the POA Standard Provisions, the Sub-Awardee shall also adhere to the following provisions on Termination and Suspension:

1. POA may unilaterally terminate this Sub-Agreement at any time, in whole or in part, for either of the following reasons:
   a. material Sub-Awardee's noncompliance; or
   b. the Sub-Awardee's financial insolvency, bankruptcy, assignment in favor of creditors, or similar or comparable status; or
   c. the termination or non-funding of all or part of the Prime Award; or
   d. Termination for Convenience - Either party may terminate this Sub-grant for convenience upon thirty (30) days prior written notice to the other party

2. The Parties may mutually agree to terminate the Sub-Agreement at any time, in whole or in part, upon such terms and conditions as may be agreed between them.

3. Termination shall be effected by written notice to the terminated Party, which notice shall identify the basis for termination, the reason(s) therefore, the effective date of the action, a statement identifying which part (or all) of the remainder of the Sub-Agreement Term or the program activities is terminated, and procedures and standards, as appropriate, for phasedown costs and submission of final invoices.

4. The termination shall be effective on the date stated in the notice.

5. If at any time USDOL determines that continuation of all or part of the funding for a program should be suspended or terminated because such assistance would not be in the national interest of the United States or would be in violation of an applicable law, then USDOL may directly or through POA, following notice to the Sub-Awardee, suspend or terminate this award in whole or part and prohibit the Sub-Awardee from incurring additional obligations chargeable to this award other than those costs specified in the notice of suspension during the period of suspension. If the situation causing the suspension continues for 60 days or more, then USDOL, directly or through POA, may terminate this award on written notice to the Sub-Awardee and cancel that portion of this award which has not been irrevocably committed to third parties.

6. POA and USDOL reserve the right to terminate this Sub-Award or take other appropriate measures if the Sub-Awardee or a key individual of the Sub-Awardee is found to have violated any of USDOL's Standard Provisions.

7. Termination and Suspension Procedures. Upon receipt of and in accordance with a termination notice as specified above, the Sub-Awardee shall take immediate action to minimize all expenditures financed by this award. Unless otherwise stated in the termination notice, or as otherwise approved on a case by case basis, POA shall not be obligated to reimburse the Sub-Awardee for any expenses incurred after the termination or suspension effective date. The Sub-Awardee shall, with due regard to economy, effect an expeditious but orderly phasedown of program activities and implementation efforts (including, without limitation, subcontracts and lower-tier sub-awards). Notwithstanding termination, POA' obligation to reimburse termination costs under this article shall in all respects be subject to USDOL funding and, if required, USDOL approval.

8. *Remedies for Noncompliance.* If a Sub-Awardee materially fails to comply with the terms and conditions of this Sub-Agreement, whether stated in a Federal statute, regulation, assurance, application, or notice of Sub-Agreement, POA may impose any of the following actions, as appropriate in the circumstances:

a. Temporarily withhold cash payments pending correction of the deficiency by the Sub-Awardee or more severe enforcement action by POA ;
b. Disallow all or part of the cost of the activity or action not in compliance;
c. Wholly or partly suspend or terminate the current Sub-Agreement;
d. Take other remedies that may be legally available;

9. *Effects of suspension and termination*. Costs of obligations incurred during a suspension or after termination of the Sub-Agreement are not allowable unless POA expressly authorizes them in the notice of suspension or termination or subsequently. Other costs during suspension or after termination which are necessary and not reasonably avoidable are allowable if:

a. The costs result from obligations which were properly incurred before the effective date of suspension or termination, are not in anticipation of it, and in the case of a termination, are non-cancelable, and the costs would be allowable if the Sub-Agreement were not suspended or expired normally at the end of the funding period in which the termination takes effect.

10. *Force Majeure Circumstances*: Neither POA or the Sub-Awardee shall be liable for the violation of its obligation, if such violation is caused due to military actions, violations of public order, prohibitory acts of government, fires, floods, epidemics, or other circumstances which cannot be foreseen and have Force Majeure character, being beyond reasonable control. The party is released from liability for any such violation during the period of the Force Majeure circumstances if the other party is immediately notified in writing concerning the existence of such circumstances. In the case where Force Majeure circumstances continue to exist for more than 60 days, either of the parties can terminate this Agreement.

ARTICLE 28. General Provisions

To the extent applicable hereto in accordance with the regulations of USDOL governing POA' prime agreement, the POA Standard Provisions (Annex F) are incorporated in this Sub-agreement by this reference with the same force and effect as though set forth at length herein.

The parties hereto have caused this Sub-agreement to be duly signed and executed effective the date above written.

ARTICLE 29. Prior Approval of Expenses

Prior written approval from POA is required for the following items:

- All consultancies, contracts, and purchase orders over 10,000 USD
- Equipment purchases over 5,000 USD (unitary cost per equipment)

If prior written approval is not received by the Sub-Awardee, the costs will be disallowed and not reimbursed to the Sub-Awardee.

To request prior approval, Sub-Awardee will submit the written request including the following:

- Full procurement package in accordance with Sub-Awardee procurement policy and compliance with USDOL procurement standards.

If the procurement package is not complete, or not in accordance with USDOL, then POA will deny the request until the proper supporting documentation can be provided.

ARTICLE 30. Project Coordination and Supervision
POA has designed the following as the Program Managers and points of contact for this Sub-Award. This team will serve as the day-to-day liaison between POA and the Sub-Awardee.

Address written notice to:

Carmen S. Peña
POA
1424 K Street NW, Suite 700
Washington, DC 20005

For Sub-Award-related matters:

Macarena Jimenez
Senior Director, CPU
Mobile Phone: +1 202-628-3300
Email: mmidling@partners.net

For programmatic (including Monitoring and Evaluation)-related matters:

Ingrid Ceballos
Project Director
Mobile Phone: +1 202-628-3300
Email: iceballos@partners.net

ARTICLE 31. Telecommunications Services and Equipment
The Sub-Awardee is prohibited from procuring or using video surveillance and telecommunications equipment or services sold by Huawei Technologies Company or ZTE Corporation, Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, Dahua Technology Company or any subsidiary or affiliate of such entities with funds from the Sub-Award. POA also reserves the right to prohibit equipment and services from companies not indicated above. Any costs for prohibited telecommunications services and equipment will be disallowed and the responsibility of the Sub-Awardee.

ARTICLE 32. USDOL Acknowledgement and Disclaimer, and Use of the USDOL Seal
When issuing statements, press releases, requests for proposals, bid solicitations and other documents describing projects or programs funded in whole or in part with USDOL funds, the Sub-Awardee must include the following acknowledgement:

Funding is provided by the United States Department of Labor under cooperative agreement number IL-35868-21-75-K. XX percentage of the total costs of the project or program is financed with federal funds, for a total of XX dollars.

Projects funded under an umbrella cooperative agreement could include individual project amounts in lieu of the total umbrella agreement amount. Generally, acknowledgements for a global project should reference the full umbrella agreement amount, while acknowledgements for particular country projects should reference the country project amounts.

The Sub-Awardee must also clearly state the percentage and dollar amount of the total costs of the project or program that will be financed by non-governmental sources unless it is clearly inferable from the statement above.

In addition, the Sub-Awardee is required to include a disclaimer in publications, reports, and other materials that have been directly funded by USDOL and that are produced, edited and published for distribution beyond the Sub-Awardee and USDOL (i.e., to other donors, organizations, or the general public) as follows:

This material does not necessarily reflect the views or policies of the United States Department of Labor, nor does mention of trade names, commercial products, or organizations imply endorsement by the United States Government.

If there are any reasons preventing the Sub-Awardee from including the USDOL acknowledgment or disclaimer in the publications, reports, or other materials listed above, the Sub-Awardee must discuss the issue with the POA prior to publication to obtain appropriate guidance from the Grant Officer on the matter.

Subject to prior POA and USDOL approval, the Sub-Awardee may apply the USDOL seal to USDOL-funded material prepared for distribution, including posters, videos, pamphlets, research documents, national survey reports, impact evaluations, best practices reports, and other publications of global interest. The Sub-Awardee must consult with the POA with sufficient advanced notice on whether the seal may be used on any such items prior to final draft or final presentation for distribution. POA will obtain USDOL written permission before placing the USDOL seal on any item.

ARTICLE 33. Funding Restrictions and/or other Conditions of Award
The following funding restrictions and/or other conditions of award apply unless prior written approval is received:

- Award funds must not duplicate existing foreign government activities or substitute for activities for which such governments have already assumed responsibility. Any award funds budgeted to support activities by host country governments during the life of the award require USDOL prior approval in accordance with the MPG.
- POA will discuss with ILAB/OTLA any union engagement that is being considered for this project. Prior approval must be provided by both POA and USDOL before the Sub-Awardee has any union engagement.

POA **Social Accountability International**

_____ _____

John McPhail
President and CEO

Jane Hwang
President and CEO

_____
John Georgantas
Chief Financial Officer

END OF THE SUB-AWARD SCHEDULE

ANNEX A: PROGRAM DESCRIPTION AND OBJECTIVES

Mexico Awareness Raising Project
Partners of the Americas and Social Accountability International
(SAI) Scope of Work

Partners of the Americas (POA) implements the Mexico Awareness Raising Project, a project to increase workers', employers', and union leaders' understanding of Mexico's new labor systems and strengthen the capacity of institutions monitoring labor rights and reform implementation. The project aims to reach this goal through the following two objectives: increasing understanding by workers, employers, and union leaders of how to utilize Mexico's new labor systems to protect labor rights and effectively address labor disputes; and strengthen the capacity of federal and state level Secretariat of Labor and Social Welfare staff and constituents from key institutions to conduct outreach regarding labor rights and the implementation of labor reforms among targeted audiences.

Social Accountability International (SAI), a sub-awardee under this project, as part of coordinated activities with POA and other sub-awardees, will reach targeted audiences in most of the strategically important sectors to U.S. trade with Mexico and listed in the Rapid Response Labor Mechanism of the USMCA, including automotive assembly, auto parts, steel and aluminum, mining, and electronics. While activities will not focus on the industrial bakery sector and aerospace in the absence of partners in unions drawn from the independent movement, they will incorporate call center workers. Geographical coverage will be derived from industrial clusters in these priority sectors across the Mexican states. Activities will include the strengthening of STPS capabilities to disseminate the labor reform at the national level. SAI will maintain and develop strong relationships with national employer associations and local employers that will participate in the implementation of this project.

Objective 1: Increase understanding by workers, employers, and union leaders of how to utilize Mexico's new labor systems to protect labor rights and effectively address labor disputes.

SAI's strategy in working with POA on this objective reflects a shared goal to provide training and build capacity of small, medium and large employers, to meet the new requirements of Mexico's labor reform, by providing guidance on responsible production and sourcing practices, working with national employer associations, large employer sustainability and corporate social responsibility (CSR) teams and auditors, and by soliciting their collaboration to reach second tier suppliers located throughout Mexico. These lower-tier manufacturers are primarily small and medium enterprises (SMEs), with very vulnerable workforce populations still operating under the regimen of protection contracts, and with high probability for having little understanding of the latest changes in the law, including pertinent information about collective bargaining agreement (CBA) voting and their responsibilities in elections. An additional point of entry to educational and awareness-raising outreach interventions for the Mexican employer sector is through targeting the supply chains of large national and international employers, with significant labor presence in Mexico and a significant supply chain that crosses national and international borders.

SAI will coordinate with partners CFO and CDM to maximize impact and efficiency in the delivery of the workshops. It is mutually beneficial to align training material and messaging: streamlining resources and collaborating on workshops will save us and the partners' time and energy and it will improve the quality of the workshop for the participants. Where relevant, we should hold the workshops together so to not silo unions from employers where they are already working in conjunction. The messaging should be the same from CFO and CDM to the unions and SAI to the employers.

Activities under Objective 1 include:

Medium Term Objective (MTO 1.1): Improved understanding of labor reform content for workers and labor rights organizations

Short Term Objective (STO) 1.1.1: Expanded learning about the reform among workers and union leaders through educational programming

Prepare employers through webinars and workshops

The expectation is to reach a minimum of 1,000 companies throughout the duration of the project, reaching an average of 300 employers each year through in person and online workshops of between 20 and 30 participants, with additionally the development and delivery of toolkits to further the reach on a national level, employers who did not have the opportunity to attend the training sessions. SAI will work with 11 national employer sectoral associations and their chapters, to disseminate these tools to a minimum of 1,000 employers as targeted above. Proposed activities will aim to install capacities within employers, as key players for the effective implementation of the labor reform, to ensure greater employer awareness and compliance with Freedom of Association and Collective Bargaining legal frameworks and other benchmarks, with the CBA legitimation process, as well as the development and implementation of protocols on gender-based violence (GBV).

SAI will engage with key employer and sectoral associations, and working groups, to promote attendance in its workshops and webinars, by individual employers and suppliers. Data on the effectiveness of these interventions will be collected by questionnaire before/during and after each activity takes place.

- SAI will conduct a series of 50 webinars, with topics tailored to address sector- and geographic-specific concerns about the labor reforms and the USMCA.
- Working with a minimum of 11 national and local chapters of employer associations (COPARMEX, CCE, INDEX, INA and others), extending invitations to 5,000 employers and suppliers.
- In coordination with POA, SAI will identify relevant STPS unit leaders, high-level staff, and other expert interlocutors for participation in and/or moderators of webinars.
- SAI will develop content and deliver and be responsible for organizing the logistics, will mobilize attendance, develop the agendas and coordinate with stakeholders, and will lead the organization of venues, registration and communications with participants.
- SAI will develop and/or tailor compliance self-evaluation and improvement tools on freedom of association and collective bargaining. This will include model policies on freedom of association and the right to bargain collectively for employers who wish to reduce their risks.

- SAI will conduct 50 hands-on workshops, with 20 to 30 participants in each, using a management systems approach and covering all the major changes to the law to help employers promote compliance with the reform within their supply chains.

- SAI will develop training material, toolkits and complementary materials for the above webinars, workshops and other potential dissemination channels

  - These may include but are not limited to presentations, FAQs, guidebooks, toolkits, interactive forms, templates, sample videos, and other materials that employers can easily adapt to their implementation plans.

- Topics will include principles of freedom of association, collective bargaining, employer responsibilities in registering or authenticating collective bargaining agreements under the new reform protocols, the creation and application of gender based violence and harassment protocols, and key aspects of *USMCA Chapter 23: Labor and Annex 23-A: Worker Representation in Collective Bargaining in Mexico* as well as the role and function of Rapid Response Panels.

- In collaboration with POA, SAI will engage employer associations and STPS to make sure that the materials are relevant for the target audiences and to identify which materials already developed by STPS and available on the portal are best suited for trainings.

- Complex topics will be divided into easily digestible modules, featuring "microburst" training methods as appropriate, and offering progressive learning pathways that will move from the awareness- raising stage to address day-to-day implementation problems and solutions.

MTO 1.2: Employers apply best practices in accessing new labor reform processes

STO 1.2.1: Improved application by employers and dialogue and exchanges of best practices on reform processes among business associations and employers

Industry sharing and communications platforms

- By the middle of Year 2, SAI will map and report on the existing industry-sharing and communications platforms already used among peak employer organizations and relevant industrial sectoral associations at the national, state, and local levels. The report will include recommendations for how to best leverage the existing employer platforms.

Summits with STPS for Sectoral Business Associations

- SAI will conduct a total of 35 national level summits in locations to be defined jointly with POA/STPS Federal in order to maximize the reach of these activities and ensure a national coverage, with a focus on the project´s target sectors and prioritized geographic areas. Summits will be designed to elicit concerns and best practices within the business community about the reform.
  - Topics will cover at least the following four aspects of the reform:
    - Structural changes in the justice system and new procedures of the Conciliation Centers.
    - Responsibilities and concerns about implementation at the workplace
    - The benefits of the new labor regulation context for business
    - USMCA labor panel compliance mechanisms
  - SAI will leverage the program's relationship with STPS leadership to recruit speakers from units of the Secretariat to participate in summits.
  - SAI will coordinate with sector associations to extend invitations and ensure participation of employers and their human resources personnel attend summits.

Application and exchange of Labor Reform-Related Best Practices

- SAI will conduct in-person technical assistance activities with 90 companies, with a minimum of one in-person site per company.

  - During these activities, SAI will adapt its Social Fingerprint tool to assess and strengthen current management systems for labor reform.

- Based on results of the assessment, SAI will work with employers to strengthen employer compliance with Freedom of Association and Collective Bargaining legal frameworks and other benchmarks, compliance with the CBA legitimation process, and developing and implementing protocols on GBV.

- Working through employer sectoral associations, SAI will conduct 100 best labor practice exchanges with human resources and management personnel of specific selected companies within the auto assembly, auto parts, electronics manufacturing, mining, and steel/aluminum sectors to exchange experiences with other employers around two areas: union democracy, and the prevention and remediation of gender-based violence at work (GBV).

Monitoring and Development of United States-Mexico-Canada Agreement (USMCA) Cases

- All SAI technical assistance, including workshops, seminars, and hands-on training, will incorporate materials on the USMCA process developed by STPS and other government units.

Objective 2: Strengthen the capacity of federal and state level Secretariat of Labor and Social Welfare staff and constituents from key institutions to conduct outreach regarding labor rights and the implementation of labor reforms among targeted audiences.

MTO 2.1: Increased capacity across STPS and key partner institutions to coordinate, develop and disseminate appropriate content on labor reform, especially for workers

STO 2.1.1 Strengthened communications coordination among relevant government agencies through interagency working group

SAI´s approach for implementing activities under Outcome 2 will focus on strengthening STPS's capacity to conduct outreach regarding the implementation of labor reforms among employers.

Communications Capacity Assessment of STPS and Peer Institutions

- In collaboration with POA and other sub-awardees, SAI will participate in the implementation of the Communications Capacity Assessment, contributing with valuable input for the development of the Action Plan with STPS, which will aim to disseminate the labor reform with a perspective of sustainability of the communication efforts to be undertaken by the STPS with support from the project.

Construction of Capacity-Building Actions Plans for STPS and State-level STPS Delegations and Key Institutions

- In collaboration with POA, SAI will engage employer associations and STPS to make sure that the materials are relevant for the target audiences and to identify which materials already developed by STPS and available on the portal are best suited for trainings. In this context, SAI will coordinate efforts with STPS and will contribute to strengthen their capacity to reach employers and to replicate outreach activities to be carried out in the framework of the project.

- SAI will contribute to STPS capacity-building Action Plans for employer communications with STPS programming unit staff through a co-creation approach guided by STPS Capacity Building unit staff and POA capacity building specialists.

- As discussed in the section on employer webinars, workshops, and other potential dissemination channels, SAI will contribute to build the outreach capacity of key institutions such as the Federal Center for Labor Conciliation and Registration (CFCRL) by actively engaging officials in workshops and other awareness-raising activities, as well as through the delivery of toolkits and complementary materials to increase their capacity to disseminate relevant information on the labor reform among employers and other key stakeholders.

Delivery of Capacity-Building Activities for STPS and State-level STPS Delegations

SAI will contribute to assessing the current and projected future content needs and preferred presentation channels of employers and business associations and will provide recommendations to address them and support STPS in their implementation.

Other technical tasks

- SAI will support other project activities as appropriate and coordinate, as needed, with other sub-awardees and key stakeholders to ensure a one team approach in the implementation of the proposed project strategy.
- SAI will participate and support in the development of the Semi-Annual Technical Progress Report (TPRs) for USDOL-funded projects.
- SAI will participate in virtual and in person meetings with key stakeholders.
- SAI will be responsible for collecting and providing accurate data for project monitoring per the Project Monitoring Plan (attached) and USDOL requirements.
- SAI will participate, as needed and appropriate, in external mid and final evaluations, and audits, as required by POA and/or USDOL.
- SAI will submit a detailed work plan upon signing a Sub-Agreement. The detailed work plan must be approved by POA prior to the start of activities.

Sustainability & Risk Mitigation Strategy

POA places great emphasis on sustainability and risk mitigation, which are detailed in a sustainability strategy. For each project long-term objective, the project has identified high-probability / high-impact risks to sustainability and a mitigation strategy for each of these. For objective 1, on increasing understanding of the reform, POA identified several risks, including lack of access to digital technology, resistance of employers and corporatist unions to reforms, potential retaliation against workers, and the potential that non-independent unions may intentionally communicate misinformation on labor reform issues to workers. For objective 2, on building the capacity of the federal and state level STPS staff and constituents from key institutions, risks identified included issues related to steep budget reductions, human resource capacity constraints and staff turnover, as well as the potential that key government institutions may not coordinate as expected. SAI will ensure sustainability of project activities as outlined in the project sustainability strategy.

ANNEX B: DETAILED BUDGET

Name of Project: Mexico Awareness Raising Project
Name of Subawardee: Social Accountability International (SAI)
Subaward Budget

BUDGET ITEM	COUNTRY	CATEGORY	UNIT	# of Units	RATE/ UNIT	YEAR 1	# of Units	YEAR 2	# of Units	YEAR 3	# of Units	YEAR 4	# of Units	YEAR 5	TOTAL PARTNERS OF THE AMERICAS	TOTAL COST SHARING	PROJECT GRAND TOTAL
Direct Labor																	
Field Personnel (include Level of Effort (LOE))																	
Assessor, Trainer & Facilitator 1	Mexico	Salaries	Month	1.00	5,000	5,000	4.00	20,000	4.00	20,000	4.00	20,000	-	-	65,000	-	65,000
Assessor, Trainer & Facilitator 2	Mexico	Salaries	Month	0.00	5,000	-	4.00	20,000	4.00	20,000	4.00	20,000	-	-	60,000	-	60,000
Translator	Mexico	Salaries	Month	0.50	7,200	3,600	1.00	7,200	1.00	7,200	1.00	7,200		-	25,200	-	25,200
HQ Personnel (include Level of Effort (LOE))																	
Senior Director, Innovations and Capacity Building (Technical Lead)	US	Salaries	Month	1.50	10,833	16,250	4.00	43,332	4.00	43,332	3.00	32,499		-	135,413	-	135,413
Associate Director, Innovations and Partnerships (Project Management Lead)	US	Salaries	Month	1.00	8,333	8,333	1.50	12,500	1.50	12,500	1.50	12,500		-	45,832	-	45,832
Program Manager, Policy & Stakeholder Engagement	US	Salaries	Month	1.00	6,700	6,700	4.00	26,800	4.00	26,800	4.00	26,800		-	87,100	-	87,100
Manager, Communications & Marketing	US	Salaries	Month	0.50	6,700	3,350	1.00	6,700	1.00	6,700	1.00	6,700		-	23,450	-	23,450
Communications Associate	US	Salaries	Month	0.50	5,000	2,500	1.00	5,000	1.00	5,000	1.00	5,000		-	17,500	-	17,500
Policy/Legal Manager	US	Salaries	Month	0.00	7,000	-	1.00	7,000	0.50	3,500	0.00	-		-	10,500	-	10,500
CEO	US	Salaries	Month	0.50	13,750	6,875	0.50	6,875	0.50	6,875	0.50	6,875		-	27,500	-	27,500
CFO	US	Salaries	Month	0.25	11,250	2,813	0.50	5,625	0.50	5,625	0.50	5,625		-	19,688	-	19,688
Finance & Administrative Coordinator	US	Salaries	Month	0.25	5,700	1,425	0.70	3,990	0.70	3,990	0.70	3,990		-	13,395	-	13,395
Experts/Consultants	Global	Salaries	Month	0.00	15,000	-	1.00	15,000	1.00	15,000	0.00	-		-	30,000	-	30,000
IT Consultant	US	Salaries	Month	0.25	13,000	3,250	0.25	3,250	0.25	3,250	0.25	3,250		-	13,000	-	13,000
Subtotal						**60,095**		**183,272**		**179,772**		**150,439**		**-**	**573,577**	**-**	**573,577**
Fringe Benefits																	
Fringe benefits HQ Support		Fringe Benefits			30.00%	14,474		35,346		34,296		29,997		-	114,113	-	114,113
Subtotal Direct Labor						**$ 74,569**		**$ 218,618**		**$ 214,068**		**$ 180,435**		**$ -**	**$ 687,689**	**$ -**	**$ 687,689**
Travel																	
T2. HQ Trips to Mexico																	
Airfare for: NYC<>Mexico City		Travel	Trip	2	550	1,100	4	2,200	4	2,200	4	2,200	-	-	7,700	-	7,700
Lodging and M&IE		Travel	Day	20	160	3,200	40	6,400	40	6,400	40	6,400	-	-	22,400	-	22,400
Local transportation		Travel	Day	10	25	250	40	1,000	40	1,000	40	1,000	-	-	3,250	-	3,250
Misc. Staff Travel Related Expenses		Travel	Trip	2	50	100	4	200	4	200	4	200	-	-	700	-	700
T3. Field Personnel Trips in Mexico																	
Airfare within Mexico		Travel	Trip	-	250	-	16	4,000	16	4,000	16	4,000	-	-	12,000	-	12,000
Lodging and M&IE		Travel	Day	-	115	-	128	14,720	128	14,720	128	14,720	-	-	44,160	-	44,160
Local transportation		Travel	Day	-	25	-	128	3,200	128	3,200	128	3,200	-	-	9,600	-	9,600
Misc. Staff Travel Related Expenses		Travel	Trip	-	50	-	16	800	16	800	16	800	-	-	2,400	-	2,400
Subtotal Travel						**$ 4,650**		**$ 32,520**		**$ 32,520**		**$ 32,520**		**$ -**	**$ 102,210**	**$ -**	**$ 102,210**
Supplies - Under $5,000 USD																	
Desktop computers, laptops and software		Supplies	Unit	-	1,500	-	1	1,500	1	1,500	-	-	-	-	3,000	-	3,000
Stationary/Printing Materials		Supplies	Unit	-	300	-	12	3,600	12	3,600	12	3,600	-	-	10,800	-	10,800
Misc. Office Supplies		Supplies	Unit	-	20	-	12	240	12	240	12	240	-	-	720	-	720
Subtotal Supplies						**$ -**		**$ 5,340**		**$ 5,340**		**$ 3,840**		**$ -**	**$ 14,520**	**$ -**	**$ 14,520**
Office Expenses																	
Banking and cash handling fees		Office Expenses	Month	3	100	300	12	1,200	12	1,200	12	1,200	-	-	3,900	-	3,900
Email/Internet/Telecom/Video Conferencing		Office Expenses	Month	3	90	270	12	1,080	12	1,080	12	1,080	-	-	3,510	-	3,510
Subtotal Office Expenses						**$ 570**		**$ 2,280**		**$ 2,280**		**$ 2,280**		**$ -**	**$ 7,410**	**$ -**	**$ 7,410**
The above is only for percentage calculations for the below outcomes																	
Outcome 1: Increase understanding by workers, employers, and union leaders on how to utilize Mexico's new labor systems to protect labor rights and effectively address labor disputes.																	
Activities/Costs																	
Personnel & Fringe (60% of Direct Labor line item)		Outcome1	Unit	74,569	60.00%	44,741	218,618	131,171	214,068	128,441	180,435	108,261	-	-	412,614	-	412,614
Travel 60%		Outcome1	Unit	4,650	60.00%	2,790	32,520	19,512	32,520	19,512	32,520	19,512	-	-	61,326	-	61,326
Supplies 60%		Outcome1	Unit	-	60.00%	-	5,340	3,204	5,340	3,204	3,840	2,304	-	-	8,712	-	8,712
Office Expenses 60%		Outcome1	Unit	570	60.00%	342	2,280	1,368	2,280	1,368	2,280	1,368	-	-	4,446	-	4,446
1.1: Publications/publishing		Outcome1	Unit	-	5,000	-	1	5,000	1	5,000	-	-	-	-	10,000	-	10,000
1.2: Communications/Technology Platform testing and subscription fees		Outcome1	Unit	-	5,000	-	2	10,000	1	5,000	1	5,000	-	-	20,000	-	20,000
1.3: Summit and workshop expenses - Venue and Catering		Outcome1	Unit	-	1,000	-	3	3,000	3	3,000		-	-	-	6,000	-	6,000
1.4: Workshop expenses - Venue and Catering		Outcome1	Unit	-	1,000	-	16	16,000	16	16,000	16	16,000	-	-	48,000	-	48,000
Direct Costs Total for Outcome 1						**$ 47,873**		**$ 189,255**		**$ 181,525**		**$ 152,445**		**$ -**	**$ 571,098**	**$ -**	**$ 571,098**
Total Indirect Costs (De Minimis) for Outcome 1		Indirect Charges			10.00%	$ 4,787		$ 18,925		$ 18,152		$ 15,245		$ -	$ 57,110	$ -	$ 57,110
Subtotal Outcome 1						**$ 52,660**		**$ 208,180**		**$ 199,677**		**$ 167,690**		**$ -**	**$ 628,207**	**$ -**	**$ 628,207**
Outcome 2: Build the capacity of the federal and state level Secretariat of Labor and Social Welfare (Secretaria de Trabajo y Prevención Social or STPS) staff and constituents from key institutions to conduct outreach regarding labor rights and implementation of the labor reforms among target audiences.																	
Activities/Costs																	
Personnel & Fringe (35% of Direct Labor line item)		Outcome2	Unit	74,569	35.00%	26,099	218,618	76,516	214,068	74,924	180,435	63,152	-	-	240,691	-	240,691
Travel 35%		Outcome2	Unit	4,650	35.00%	1,628	32,520	11,382	32,520	11,382	32,520	11,382	-	-	35,774	-	35,774
Supplies 35%		Outcome2	Unit	-	35.00%	-	5,340	1,869	5,340	1,869	3,840	1,344	-	-	5,082	-	5,082
Office Expenses 35%		Outcome2	Unit	570	35.00%	200	2,280	798	2,280	798	2,280	798	-	-	2,594	-	2,594
2.1: Speaker honorariums		Outcome2	Unit		250	-	6	1,500	6	1,500	6	1,500	-	-	4,500	-	4,500
2.2: Meeting/Workshop Expenses - Venue and Catering		Outcome2	Unit	-	1,000	-	6	6,000	6	6,000	6	6,000	-	-	18,000	-	18,000
2.3: Online assessment platform fees		Outcome2	Unit	-	10	-	300	3,000	300	3,000	400	4,000	-	-	10,000	-	10,000
2.4: Press releases		Outcome2	Unit	-	2,000	-	1	2,000	1	2,000	1	2,000	-	-	6,000	-	6,000
Direct Costs Total for Outcome 2						**$ 27,926**		**$ 103,065**		**$ 101,473**		**$ 90,176**		**$ -**	**$ 322,640**	**$ -**	**$ 322,640**
Total Indirect Costs (De Minimis) for Outcome 2		Indirect Charges			10.00%	$ 2,793		$ 10,307		$ 10,147		$ 9,018		$ -	$ 32,264	$ -	$ 32,264
Subtotal Outcome 2						**$ 30,719**		**$ 113,372**		**$ 111,620**		**$ 99,194**		**$ -**	**$ 354,904**	**$ -**	**$ 354,904**
Monitoring, Evaluation, and Collection of Reliable Data																	
Activities/Costs																	
Personnel & Fringe (5% of Direct Labor line item)		M&E	Unit	74,569	5.00%	3,728	218,618	10,931	214,068	10,703	180,435	9,022	-	-	34,384	-	34,384
Travel 5%		M&E	Unit	4,650	5.00%	233	32,520	1,626	32,520	1,626	32,520	1,626	-	-	5,111	-	5,111
Supplies 5%		M&E	Unit	-	5.00%	-	5,340	267	5,340	267	3,840	192	-	-	726	-	726
Office Expenses %		M&E	Unit	570	5.00%	29	2,280	114	2,280	114	2,280	114	-	-	371	-	371
Direct Costs Total for Monitoring, Evaluation, and Collection of Reliable Data						**$ 3,989**		**$ 12,938**		**$ 12,710**		**$ 10,954**		**$ -**	**$ 40,591**	**$ -**	**$ 40,591**
Total Indirect Costs (De Minimis) for M&E and Collection of Reliable Data		Indirect Charges			10.00%	$ 399		$ 1,294		$ 1,271		$ 1,095		$ -	$ 4,059	$ -	$ 4,059
Subtotal Monitoring, Evaluation, and Collection of Reliable Data						**$ 4,388**		**$ 14,232**		**$ 13,981**		**$ 12,049**		**$ -**	**$ 44,651**	**$ -**	**$ 44,651**
TOTAL COSTS						**$ 87,767**	**$ -**	**$ 335,784**	**$ -**	**$ 325,279**	**$ -**	**$ 278,933**	**$ -**	**$ -**	**$ 1,027,762**	**$ -**	**$ 1,027,762**

ANNEX C: KEY PERSONNEL and TERMS OF REFERENCE (If applicable)

No Key Personnel included

NAME	*POSITION*	*CONTACT INFORMATION*

ANNEX D: PROGRAMMATIC IMPLEMENTATION SCHEDULE, REQUIREMENTS AND REPORTS

I. **Programmatic Requirements**

Programmatic requirements are included in Annex A.

II. **Reporting**

a. Narrative Reports: SUB-AWARDEE is responsible for the submission of monthly and bi-annual narrative reports to POA. POA will provide SUB-AWARDEE with all appropriate templates. Reports must be submitted on time, as outline in ANNEX E.

b. Budget Reports: SUB-AWARDEE must send quarterly budget updates and detailed expenditure reports on the line items outlined in ANNEX B, Detailed Budget.

c. Financial Reports: SUB-AWARDEE must submit monthly financial reports containing a detailed expenditure report, certification of expenses, and supporting documentation of all expenses valued at USD$25 or more.

ANNEX E: REPORT SUBMISSION DATES

Submission Date	Report Type	Notes
Two months prior to the beginning of the implementation year	Annual Work Plan (AWP)	The subawardee will work with POA in developing an AWP which will contain a detailed project implementation schedule, resources to be used and summary budget associated with each project component and subcomponent broken down by week and/or by month. The AWP shall be aligned to the Monitoring and Evaluation Plan. The AWP will describe activities to be conducted at a greater level of detail than the Program Description in the subaward. All activities must be within the Program Description. The subawardee will work with POA and other implementing partners in the development of the AWP so it is the result of a collaborative process. POA will provide a template for this deliverable and will inform the subawardee of the detailed process for each AWP development, distribution, submission and approval.
5th of month following the end of the reporting period	Monthly Progress Reports	The report will follow a format prescribed by POA. Reports should reflect results and activities of each preceding month. Reports shall describe progress made during the reporting period and assess overall progress to that date against: a) performance indicators agreed in the Monitoring and Evaluation Plan, b) the planned outputs established in the annual work plan for that period. The reports shall also highlight key accomplishments during the past month, notable success stories, any issues that are affecting the delivery of timing services provided by the subawardee, steps taken or proposals being made to resolve issues.

7th of month following the end of the reporting period	Monthly Financial Report	The subawardee is required to prepare and submit financial reports containing a detailed expenditure report, certification of expenses, and supporting documentation of all expenses valued at USD25 or more.
45 days after the end of the Sub-Award	Final Report	The sub-recipient will submit a detailed Final Report, which includes the following: • An overall description of the activities conducted and the significance of these activities • Summarize the project's accomplishments and impact as well as any unmet targets and the reason for them • Elaborate the issues and problems that emerged during project implementation and the lessons learned in dealing with them • Comments and recommendations regarding unfinished work and/or future needs • Financial report detailing how funds were expended and leverage, by line item • Other sections and information as agreed upon with the Project Director and/or the POA team

Other reports and/or plans will be requested on an ad hoc basis. POA will provide necessary details about any ad hoc report or plan with as much time as possible and will work with the Sub-Awardee to ensure any deliverable is clearly explained and/or templates are provided.

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ANNEX F
PARTNERS OF THE AMERICAS (POA) STANDARD PROVISIONS

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Unless otherwise stated in the agreement, these provisions supersede.

I. ANTICORRUPTION PROVISIONS

Applicable to all

A. The RECIPIENT shall conduct all activities related to this engagement in a fair, honest and transparent manner.
B. RECIPIENT represents and certifies that RECIPIENT rejects corruption in all of its forms, including Bribery, making a Facilitation Payment or any Prohibited Act.
C. RECIPIENT represents and certifies that RECIPIENT is aware that Bribery is a crime under a host of anticorruption statutes, including the Bribery Act, the Criminal Code Act, the FCPA and similar statutes, and therefore, strictly prohibited, regardless of jurisdiction or circumstance.
D. RECIPIENT shall not directly or indirectly commit or attempt to commit any Prohibited Act, including Bribery or making a Facilitation Payment.
E. RECIPIENT represents and certifies that RECIPIENT shall comply with POA Code of Conduct or with its own Code of Conduct, and that this code does not conflict with POA Code of Conduct.
F. Neither the RECIPIENT nor any of its Subsidiaries or, to the Knowledge of the RECIPIENT, any director or officer of the foregoing, acting in their capacity as such, has

    1. made or offered any unlawful payment, or offered or promised to make any unlawful payment, or provided or offered or promised to provide anything of value (whether in the form of property or services or in any other form), to any foreign or domestic official or employee of any Governmental Entity (which, for the purposes of this section, also includes any political party or candidate), or to any finder, agent, representative or other party acting for, on behalf of, or under the auspices of any official or employee of any Governmental Entity (each, a "Government Official") for purposes of unlawfully (i) influencing any act or decision of any Government Official in his or her official capacity, (ii) inducing any Government Official to do or omit to do any act in violation of his or her lawful duty, (iii) securing any improper advantage; or (iv) inducing any Government Official to influence or affect any act or decision of any Governmental Entity, in each case for the purpose of obtaining or retaining business or directing business to any person;
    2. used any corporate funds for unlawful contributions, gifts, entertainment or other unlawful expenses relating to political activity or
    3. taken any other action or made any omission that would or would reasonably be expected to result in a violation of the Foreign Corrupt Practices Act of 1977, as

amended, and the rules and regulations thereunder, or any other law of the United States, or of any other jurisdiction where the RECIPIENT conducts business governing corrupt practices, commercial bribery, money laundering, pay-to-play, anti-bribery or anticorruption or that otherwise prohibits payments to any government or public officials or employees.

G. RECIPIENT shall include these, or substantially similar, anticorruption provisions in all subcontracts or other agreements RECIPIENT makes in connection with this engagement.

[END OF PROVISION]

II. COMMUNICATION WITH POA, DONORS, CLIENTS

Applicable to all

The RECIPIENT will not propose or advocate to any official or employee of counterpart organization, or any donor agency any activity or course of action with direct impact on POA unless agreed to in advance by the POA in writing. Any work with POA for which the RECIPIENT is eligible will be organized via POA with the approval of the RECIPIENT. RECIPIENT will not communicate directly with a donor about his or her work on POA without the written consent of PARTNER'S program lead.

[END OF PROVISION]

III. DISPUTE RESOLUTION

Applicable to all

The Parties shall first attempt to resolve any dispute arising under this Agreement by informal discussions between the Parties, subject to good cause exceptions, including, but not limited to, disputes determined by either Party to require immediate relief (i.e., circumstances which may result in a misappropriation of federal funds). Any dispute that has failed to be resolved by informal discussions between the Parties within a reasonable period of time after the commencement of such discussions (not to exceed thirty (30) days), may be resolved through any and all means available under applicable law.

[END OF PROVISION]

IV. DISCLOSURES

Applicable to all

The RECIPIENT shall not disclose any matters of a confidential nature to which it may be or become privy as a result of this Agreement. Upon the expiration or termination of this Agreement, the RECIPIENT shall surrender to POA all confidential material relating to POA in his or her possession, of whatever origin and including, without limitation, duplicates, facsimiles, models, prototypes and notes relating thereto. The RECIPIENT's obligation to keep information confidential will not apply if disclosure is required by state or federal law or regulations. The RECIPIENT shall promptly notify POA regarding inquiries relating to confidential and proprietary information from the public (whether from an individual, a government agency or official, the media or other sources) so that POA may seek whatever remedy is available under applicable law. This Article shall survive any termination or expiration of this Agreement.

The RECIPIENT agrees to sign and return to POA the following documents, or certifies that RECIPIENT shall comply with its own internal policies, and that these do not conflict with POA documents and policies:

A. Statement of Confidentiality of Corporate Affairs
B. POA Code of Conduct
C. Non-Discrimination / Affirmative Action Policy
D. Harassment Policy.

[END OF PROVISION]

V. MANDATORY DISCLOSURE.

Applicable to all grantees

Sub-grantee must disclose, in a timely manner, in writing to the Federal awarding agency, OIG and to the prime recipient (pass-through entity) all violations of Federal criminal law involving fraud, bribery, or illegal gratuities potentially affecting the Federal award. Failure to make required disclosures can result in any of the remedies described in 2 CFR 200.338 "Remedies for Noncompliance", including suspension or debarment.

[END OF PROVISION]

VI. INDEPENDENT CONTRACTOR – NO JOINT VENTURE

Applicable to recipient agreements only

Nothing herein shall be deemed to create a joint venture, agency or POAhip between POA and the RECIPIENT, and neither party shall have the power to obligate or bind POA in any manner whatsoever, except as specifically provided herein. The RECIPIENT is an

independent contractor and is not an employee, partner, or co-venture of, or in any other service relationship with, POA. The manner in which the RECIPIENT'S services are rendered shall be within the RECIPIENT'S sole control and discretion.

[END OF PROVISION]

VII. INDEMNITY

Applicable to all unless otherwise specified in the agreement

To the fullest extent permitted by law, the RECIPIENT shall indemnify and hold harmless POA and its officers, directors, employees, agents, and legal representatives, from and against any and all claims, demands, liabilities, expenses (including reasonable attorney's fees and disbursements, court costs, judgments, settlements and fines), whether of omission or commission, that may be committed or suffered in connection with the performance of this Agreement by the RECIPIENT or the RECIPIENTs general business operations. This paragraph shall survive the termination or expiration of this Agreement

.

[END OF PROVISION]

VIII. NAME AND BRANDING – POA

Applicable to all

POA and the RECIPIENT shall use the POA name or marks only for activities authorized by POA in writing. All other uses will be deemed infringements of POA trademark including but not limited to all program related branding policies within POA.

[END OF PROVISION]

IX. OWNERSHIP OF WORK

Applicable to all unless otherwise specified in the agreement

The recipient may copyright works created or for which ownership was purchased with USDOL funds; however, USDOL reserves a royalty-free non-exclusive and irrevocable right to obtain, copy, publish, or otherwise use such works for federal purposes and to authorize others to do so. USDOL reserves a paid-up, nonexclusive and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use for federal purposes: i) the copyright in all tangible and intellectual products or deliverables developed under the award, including a subrecipient; and ii) any rights of copyright to which the recipient, subrecipient or a contractor purchases ownership under an award (including, but not limited

to, curricula, training models, technical assistance, assistance products, information technology, and any related materials). Such uses include, but are not limited to, the right to modify and distribute such products or deliverables worldwide by any means, electronically or otherwise. The recipient may not use federal funds to pay any royalty or license fee for use of a copyrighted work, or the cost of acquiring by purchase a copyright in a work, where the Department has a license or rights of free use in such work. Additionally, the federal government has the right to require intellectual property developed under a competitive federal award process to be licensed under a creative commons attribution license. This license allows subsequent users to copy, distribute, transmit and adapt the copyrighted work and requires such users to attribute the work in the manner specified by the recipient. If revenues are generated through selling products developed with award funds, including intellectual property, these revenues are program income. Program income is added to the award and must be expended for allowable activities.

[END OF PROVISION]

X. ALLOWABLE COSTS

Applicable to cost reimbursement contracts/agreements only

The recipient will be reimbursed for costs incurred in carrying out the purposes of this award in accordance with the terms of this award. It is the recipient's responsibility to ensure that costs incurred are (1) reasonable: costs which are generally recognized as ordinary and necessary and would be incurred by a prudent person in the conduct of normal business; (2) allocable: incurred specifically for this award; and (3) allowable: conform to any limitations in this award. POA reserves the right to make a final determination on the allowability of costs.

[END OF PROVISION]

XI. UNALLOWABLE COSTS

Applicable to grantees

Means general or centralized expenses of Sub-grantee that are not allowable administrative costs to be financed by this Agreement. Applicable contracts/agreements only

A. Alcoholic Beverages. Costs of alcoholic beverages

B. Bad Debt. Bad debt, including losses (whether actual or estimated), due to uncollectible customer's accounts and other claims, related collection costs, and related legal costs, arising from other business of the Sub-grantee.

C. Commissions and Contingency Fees. Commissions, percentages, brokerage, or contingency fees to persons or groups retained to solicit contracts unless the person or group is a bona fide commercial or selling agent maintained by Sub-grantee for the purpose of securing business.

D. Compensation.

1. Compensation which constitutes a distribution of profits, or
2. Bonuses and incentive compensation paid in stock outside of the Sub-grantee's normal compensation policy.

E. Contribution (to other entities). Contributions and donations by Sub-grantee to others.

F. Contingencies. Contributions to a contingency reserve or any similar provision made for events the occurrence of which cannot be foretold with certainty as to time, intensity, or with an assurance of their happening, are unallowable. The term “contingency reserve” excludes self-insurance reserves, pension funds, and reserves for normal severance pay.

G. Cost of Asset Valuations Resulting from Business Combinations. When the purchase method of accounting for a business combination is used, allowable amortization, cost of money, and depreciation shall be limited to the total of the amounts that would have been allowed had the combination not taken place.

H. Dividend Payments. This is a distribution of profit and is not allowed as a project expense.

I. Fines and Penalties. Cost of fines and penalties resulting from violations of, or failure of the Sub-grantee to comply with, U.S. or host country laws and regulations.

J. Goodwill. An unidentifiable intangible asset that originates under the purchase method of accounting for a business combination when the price paid by the acquiring company exceeds the sum of the identifiable individual assets acquired less liabilities assumed, based upon their fair values. The excess is commonly referred to as goodwill. Goodwill may arise from the acquisition of a company as a whole or a portion thereof. Any costs for amortization, expensing, write-off, or write-down of goodwill are unallowable.

K. Interest and Other Financial Costs. Interest on borrowing (however represented), bond discounts, cost of financing and refinancing operations, legal and professional fees paid

in connection with the preparation of a prospectus, costs of preparation and issuance of stock rights, and related financial charges, except for interest assessed by U.S. state or local taxing authorities other than those described in item H above.

L. Lobbying Costs. Costs associated with the following activities with respect to the U.S. Government (USG) and any political subdivisions thereof, are unallowable:

1. Attempts to influence the outcomes of any election, referendum, initiative, or similar procedure, through in kind or cash contributions, endorsements, publicity, or similar activities;

2. Establishing, administering, contributing to, or paying the expenses of a political party, campaign, political action committee, or other organization established for the purpose of influencing the outcomes of elections;

3. Any attempt to influence (i) the introduction of legislation, or (ii) the enactment or modification of any pending legislation through communication with any member or employee of a legislature (including efforts to influence officials to engage in similar lobbying activity), or with any government official or employee in connection with a decision to sign or veto enrolled legislation;

4. Any attempt to influence (i) the introduction of legislation, or (ii) the enactment or modification of any pending legislation by preparing, distributing or using publicity or propaganda, or by urging members of the general public or any segment thereof to contribute to or participate in any mass demonstration, march, rally fund raising drive, lobbying campaign or letter writing or telephone campaign;

5. Legislative liaison activities, including attendance at legislative sessions or committee hearings, gathering information regarding legislation, and analyzing the effect of legislation, when such activities are carried on in support of or in knowing preparation for an effort to engage in unallowable activities; or

6. Attempts to improperly influence, either directly or indirectly, an employee or officer of the Executive branch of the Federal Government to give consideration to or act regarding a regulatory or contract matter.

The following activities are exempted from the above restrictions on allowability of lobbying costs:

a) Providing a technical and factual presentation of information on a topic directly related to the performance of the Agreement through hearing testimony, statements or letters to a legislature, or subdivision, member, or cognizant staff member thereof, in response to a documented request (including a Congressional Record notice requesting testimony or statements for the record at a regularly scheduled hearing) made by the recipient member, legislative body or subdivision, or a cognizant staff member thereof; provided such information is readily obtainable and can be readily put in deliverable form; and further provided that costs under this section for transportation, lodging or meals are unallowable unless incurred for the purpose of offering testimony at a regularly scheduled legislative hearing pursuant to a written request for such presentation made by the Chairman or Ranking Minority Member of the Committee or Subcommittee conducting such hearing.

b) Any lobbying made unallowable by item 3 above of this subsection to influence state or local legislation in order to directly reduce Agreement cost, or to avoid material impairment of the Sub-grantee's authority to perform the contract.

c) Any activity specifically authorized by USG statute to be undertaken with funds from the Agreement.

M. Losses on Disposition of Plant, Equipment, or Other Capital Assets. Losses of any nature arising from the sale or exchange of plant, equipment, or other capital assets, including sale or exchange of either short- or long-term investments.

N. Losses on Other Contracts. An excess of costs over income under any other contract (including the Sub-grantee's contributed portion under cost-sharing contracts).

O. Organization Costs. Expenditures in connection with planning or executing the organization or reorganization in the corporate structure of a business, including mergers and acquisitions, or raising capital. Such expenditures include, but are not limited to, incorporation fees and cost of attorneys, accountants, brokers, promoters and organizers, management consultants, and counselors, whether or not employees of the Sub-grantee.

P. Retainer Fees. Retainer fees not supported by evidence that specific bona fide services were furnished.

Q. Taxes.
   1. Income and excess profit taxes paid by Sub-grantee to any sovereign governmental body.
   2. POA will not finance other identifiable taxes, fees, levies or impositions under the laws of the host country placed against a Sub-grantee (or any of its employees). However VAT taxes are allowable in the case that Sub-grantee is not tax exempt.

R. Travel Costs. First class air fare when less-than-first-class service is available and can meet the needs of the project, as detailed in the Agreement.

[END OF PROVISION]

XII. ACCOUNTING AND RECORDS

Applicable to all

The recipient must maintain financial records, supporting documents, statistical records and all other records, to support performance of, and charges to, this award. Such records must comply with accounting principles generally accepted in the U.S., the cooperating country, or by the International Accounting Standards Board (a subsidiary of the International Financial Reporting Standards Foundation). Accounting records and supporting documentation must, at a minimum, be adequate to show all costs incurred under this award; receipt and use of goods and services acquired under this award; the costs of the program supplied from other sources; and the overall progress of the program. Unless otherwise notified by POA, the recipient records and subrecipient records that pertain to this award must be retained for a period of three years from the date of submission of the final expenditure report.

[END OF PROVISION]

XIII. RETENTION AND ACCESS REQUIREMENTS FOR RECORDS

Applicable to all

POA authorized officials, the Donor, or any of their duly authorized representatives have the right of timely and unrestricted access to any books, documents, papers, or other records that are pertinent to the award, in order to make audits, examinations, excerpts, transcripts, and copies of such documents. This right also includes timely and reasonable access to personnel for the purpose of interview and discussion related to such documents. The rights of access in this paragraph are not limited to the required retention period, but must last as long as records are retained.

[END OF PROVISION]

XIV. SUBAWARDS AND CONTRACTS

Applicable to all

Subawardees and contractors have no relationship with the Donor under the terms of this award.

Notwithstanding any other term of this award, subawardees and contractors have no right to submit claims directly to the Donor and the Donor assumes no liability for any third party claims against the recipient.

[END OF PROVISION]

XV. AWARD TERMINATION AND SUSPENSION

Applicable to all

A. The Donor or POA may terminate this award at any time, in whole or in part, upon written notice to the other party. The termination notice must contain the reason(s) for the termination; the effective date; and, in the case of a partial termination, the portion to be terminated. If the termination is based on non-compliance, note that this termination decision may be considered in selection for future awards.

B. In the event the recipient or any of its employees, subrecipients, or contractors are found to have been convicted of a narcotics offense or to have been engaged in drug trafficking as defined below, POA reserves the right to terminate this award, in whole or in part, or take any other appropriate measures including, without limitation, refund or recall of any award amount. Additionally, the recipient must make a good-faith effort to maintain a drug-free workplace and POA reserves the right to terminate or suspend this award if the recipient materially fails to do so.

C. Termination and Suspension Procedures. Upon receipt of a termination or suspension notice from POA as specified above, the recipient must take immediate action to minimize all expenditures and, in the event of termination, cancel all obligations financed by this award to the greatest extent possible. The recipient is not entitled to costs incurred after the effective date of termination unless prior approval is provided by POA.

D. Within 30 calendar days after the effective date of such termination, the recipient must repay POA all unexpended Donor funds from this award as of the effective date of

termination, which are not otherwise obligated by a non-cancelable legally binding transaction applicable to this award.

E. The recipient must, to the greatest extent possible, include a provision in all subawards, including subawards and contracts, affording the recipient the right to terminate the subaward in the event POA or the Donor terminates this award, including the refund requirement in paragraph d.

[END OF PROVISION]

XVI. POA RULES FOR PROCUREMENT OF GOODS AND SERVICES

Applicable only when contract/agreement includes Procurement of Goods and Services

Recipient shall follow its policies on procurement of Goods and Services under this award. These must be in compliance with USG procurement procedures. RECIPIENT must provide a copy of their procurement policy upon request.

If RECIPIENT does not have procurement procedures in compliance with USG, POA expects competition in all procurements of goods and services to the maximum extent practical. For transactions valued at $10,000 USD or above, the Organization expects competition in the procurements of goods and services to the maximum extent practical. The Organization requires that an appropriate competitive process be utilized and fully documented (e.g., market research for commodities/off-the shelf items; three quotes for lower expected values; full and open competition/tender for higher expected values, etc.). At a minimum, for a proper procurement transaction at $10,000 or above, POA requires:

1. Specifications, scope of work or technical requirements for the goods or services to be purchased.

2. A defined criterion for selecting a good or service provider (e.g., price, capacity to deliver on time, quality of output, past performance where applicable, etc.).

3. Approval from the donor to make the purchase when required.

4. Solicitations of three (3) quotes or request for proposals from a pool of qualified providers or candidates.

    a. In the absence of three submitted quotes or proposals, then a clear documented memo for justification demonstrating that efforts were taken to obtain three

quotes or proposals must be prepared and submitted as part of the procurement documentation.

5. A memo that clearly documents the approved bid/proposal and analysis that documents the "procurement story" behind how the preferred supplier was selected and how the evaluation criteria were utilized.

Ineligible Suppliers are any firms or individuals that do not comply with the requirements in "Debarment and Suspension" and "Preventing Terrorist Financing" must not be used to provide any commodities or services funded under this award.

[END OF PROVISION]

XVII. RECIPIENT AND EMPLOYEE CONDUCT

Applicable to all sub-awards

The recipient must have written policies and procedures in place to prevent personal conflicts of interest and to prevent its officers, employees, or agents from using their positions for personal gain or presenting the appearance of a personal conflict of interest. A personal conflict of interest is a situation in which an officer, employee, or agent of the recipient has a financial interest, personal activity or relationship that could impair the employee's ability to act impartially when performing under the award. The recipient's written policy must be provided upon request.

The recipient or any member of an employee's immediate family cannot receive a sub-award, or have a financial or other interest in the entity selected for a sub-award without disclosing the conflict and following the recipient's written policies and procedures for mitigating the conflict. In addition, the officers, employees, and agents of the recipient must neither solicit nor accept gratuities, favors, or anything of monetary value from sub-recipients or prospective sub-recipients. Any outside business dealings of the recipient's employees must be legal and not conflict in any manner with this award. Outside business dealings include, but are not limited to, any investments, loans, employment, or business ownership by the recipient's employees, other than work to be performed under this award.

In the event the conduct of any recipient employee is not in accordance with this provision or this award, the recipient must coordinate with POA to resolve the situation with regard to such employee including, if necessary, termination of the employee.

[END OF PROVISION]

XVIII. DEBARMENT AND SUSPENSION

Applicable to all

The recipient must not transact or conduct business under this award with any individual or entity that has an active exclusion on the System for Award Management (SAM) (www.sam.gov). The list contains those individuals and entities that the U.S. Government has suspended or debarred based on misconduct or a determination by the U.S. Government that the person or entity cannot be trusted to safeguard funds. If the recipient has any questions about listings in the system, these must be directed to POA.

POA may disallow costs, annul or terminate the transaction, debar or suspend the recipient, or take other remedies as appropriate, if the recipient violates this provision. Although doing so is not automatic, POA may terminate this award if a recipient or any of its principals meet any of the conditions listed below. If such a situation arises, POA will consider the totality of circumstances—including the recipient's response to the situation and any additional information submitted—when POA determines its response.

The recipient must notify POA immediately upon learning that it or any of its principals, at any time prior to or during the duration of this award:

(1) Are presently excluded or disqualified from doing business with the U.S.;

(2) Have been convicted or found liable within the preceding three years for committing any offense indicating a lack of business integrity or business honesty such as fraud, embezzlement, theft, forgery, bribery or lying;

(3) Are presently indicted for or otherwise criminally or civilly charged by any governmental entity for any of the offenses; or

(4) Have had one or more agreements terminated for cause or default within the preceding three years.

Principal means—

(1) An officer, director, owner, partner, principal investigator, or other person within a participant with management or supervisory responsibilities related to a covered transaction; or

(2) A recipient or other person, whether or not employed by the participant or paid with Donor funds, who—

(i) Is in a position to handle funds;
(ii) Is in a position to influence or control the use of those funds; or,
(iii) Occupies a technical or professional position capable of substantially influencing the development or outcome of an activity required to perform the covered transaction.

[END OF PROVISION]

XIX. PREVENTING TERRORISM FINANCING

Applicable to all

The recipient must not engage in transactions with, or provide resources or support to, individuals and organizations associated with terrorism including those individuals or entities that appear on the Specially Designated Nationals and Blocked Persons List maintained by the U.S. Treasury (online at: http://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx) or the United Nations Security designation list (online at: http://www.un.org/sc/committees/1267/aq_sanctions_list.shtml).

[END OF PROVISION]

XX. TRAFFICKING IN PERSONS

Applicable to all unless otherwise further defined below

The recipient, subawardee, or contractor, at any tier, or their employees, labor recruiters, brokers or other agents, must not engage in:

A. Trafficking in persons (as defined in the Protocol to Prevent, Suppress, and Punish Trafficking in Persons, especially Women and Children, supplementing the UN Convention against Transnational Organized Crime) during the period of this award;

B. Procurement of a commercial sex act during the period of this award;

C. Use of forced labor in the performance of this award;

D. Acts that directly support or advance trafficking in persons, including the following acts:

1. Destroying, concealing, confiscating, or otherwise denying an employee access to that employee's identity or immigration documents;

2. Failing to provide return transportation or pay for return transportation costs to an employee from a country outside the United States to the country from which the employee was recruited upon the end of employment if requested by the employee, unless:

    a. the employee is a victim of human trafficking seeking victim services or legal redress in the country of employment or a witness in a human trafficking enforcement action;

E. Soliciting a person for the purpose of employment, or offering employment, by means of materially false or fraudulent pretenses, representations, or promises regarding that employment;

F. Charging employees recruitment fees; or

G. Providing or arranging housing that fails to meet the host country housing and safety standards.

In the event of a violation of this provision, POA is authorized to terminate this award, without penalty, and is also authorized to pursue any other remedial actions as necessary.

Definitions

A. For purposes of this award term:

1. "Employee" means either:
    a. An individual employed by you or a subrecipient who is engaged in the performance of the project or program under this award; or

    b. Another person engaged in the performance of the project or program under this award and not compensated by you including, but not limited to, a volunteer or individual whose services are contributed by a third party as an in-kind contribution toward cost sharing or matching requirements.

B. "Forced labor" means labor obtained by any of the following methods: the recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

[END OF PROVISION]

XXI. AWARDS TO FAITH BASED AND COMMUNITY ORGANIZATIONS

Applicable to all sub-awardees

Accordingly, in providing services supported in whole or in part by this agreement or in its outreach activities related to such services, the entity may not discriminate against current or prospective program beneficiaries on the basis of religion, a religious belief, a refusal to hold a religious belief, or a refusal to attend or participate in a religious practice. If the entity makes sub-awards under this agreement, faith-based organizations should be eligible to participate on the same basis as other organizations, and should not be discriminated against on the basis of their religious character or affiliation.

The entity must ensure that its personnel take into account in their work the considerations reflected in the International Religious Freedom Act concerning country-specific conditions, the right to freedom of religion, methods of religious persecution practiced in foreign countries, and applicable distinctions within a country between the nature of and treatment of various religious practices and believer.

[END OF PROVISION]

XXII. NONDISCRIMINATION

Applicable to all

No one shall be excluded from participation in, be denied the benefits of, or be otherwise subjected to discrimination on the basis of race, color, national origin, age, disability, or sex under any program or activity funded by this award.

Additionally, POA is committed to achieving and maintaining a diverse and representative workforce and a workplace free of discrimination. POA prohibits discrimination, including harassment, in its own workplace on the basis of race, color, religion, sex (including pregnancy and gender identity), national origin, disability, age, veteran's status, sexual orientation, genetic information, marital status, parental status, political affiliation, and any other conduct that does not adversely affect the performance of the employee. In addition, POA strongly encourages its grantees and their subrecipients and vendors (at all tiers), performing both in the U.S. and overseas, to develop and enforce comprehensive nondiscrimination policies for their workplaces that include protection for all their employees on these expanded bases, subject to applicable law.

Furthermore POA requires that the recipient not discriminate against any beneficiaries in implementation of this award, such as, but not limited to, by withholding, adversely

impacting, or denying equitable access to the benefits provided through this award on the basis of any factor not expressly stated in the award. This includes, for example, race, color, religion, sex (including gender identity, sexual orientation, and pregnancy), national origin, disability, age, genetic information, marital status, parental status, political affiliation, or veteran's status. Nothing in this provision is intended to limit the ability of the recipient to target activities toward the assistance needs of certain populations as defined in the award.

[END OF PROVISION]

XXIII. PILOT PROGRAM FOR ENHANCEMENT OF GRANTEE EMPLOYEE WHISTLEBLOWER PROTECTIONS

Applicable to all

POA states that an employee of a Grantee may not be discharged, demoted, or otherwise discriminated against as a reprisal for "whistleblowing." In addition, whistleblower protections cannot be waived by any agreement, policy, form, or condition of employment.

Whistleblowing is defined as making a disclosure "that the employee reasonably believes" is evidence of any of the following:

- Gross mismanagement of a funds;
- A gross waste of funds;
- An abuse of authority relating to a contract or grant;
- A substantial and specific danger to public health or safety; or
- A violation of law, rule, or regulation related to a contract or grant

Any concerns should be directed to POA or the appropriate legal authority.

[END OF PROVISION]

XXIV. CONFIDENTIALITY AGREEMENTS OR STATEMENT

Applicable to all

Confidential information, as used in this Provision, means:

- Information or data of a personal nature about an individual that, if released, would constitute a clearly unwarranted invasion of personal privacy.

In addition to the types of confidential information described above, information which might require special consideration with regard to the timing of its disclosure may derive from studies or research, during which public disclosure of preliminary invalidated findings

could create erroneous conclusions, which might threaten public health or safety if acted upon.

"Internal confidentiality agreement or statement" means a confidentiality agreement or any other written statement that the recipient requires any of its employees or subrecipients to sign regarding nondisclosure of recipient information, except that it does not include confidentiality agreements arising out of civil litigation or confidentiality agreements that recipient employees or subrecipients sign.

The recipient must not require its employees, subrecipients, or contractors to sign or comply with internal confidentiality agreements or statements that prohibit or otherwise restrict employees, subrecipients, or contractors from lawfully reporting waste, fraud, or abuse related to the performance of an award to POA.

The recipient must notify current employees and subrecipients that prohibitions and restrictions of any preexisting internal confidentiality agreements or, to the extent that such prohibitions and restrictions are inconsistent with the prohibitions of this provision, are no longer in effect.

[END OF PROVISION]

XXV. CHILD SAFEGUARDING

Applicable if contract/agreement may engage children

Because the activities to be funded under this award may involve children, or personnel engaged in the implementation of the award may come into contact with children, these activities could raise the risk of child abuse, exploitation, or neglect within Donor programs. The organization agrees to abide by the following child safeguarding core principles:

A. Ensure compliance with host country and local child welfare and protection legislation or international standards, whichever gives greater protection, and with U.S. law where applicable;

B. Prohibit all personnel from engaging in child abuse, exploitation, or neglect;

C. Consider child safeguarding in project planning and implementation to determine potential risks to children that are associated with project activities and operations;

D. Apply measures to reduce the risk of child abuse, exploitation, or neglect, including, but not limited to, limiting unsupervised interactions with children;

prohibiting exposure to pornography; and complying with applicable laws, regulations, or customs regarding the photographing, filming, or other image- generating activities of children;

E. Promote child-safe screening procedures for personnel, particularly personnel whose work brings them in direct contact with children; and

F. Have a procedure for ensuring that personnel and others recognize child abuse, exploitation, or neglect; mandating that personnel and others report allegations; investigating and managing allegations; and taking appropriate action in response to such allegations, including, but not limited to, dismissal of personnel.

The following definitions apply for purposes of this provision:

A. Child: A child or children are defined as persons who have not attained 18 years of age.

B. Child abuse, exploitation, or neglect: Constitutes any form of physical abuse; emotional ill-treatment; sexual abuse; neglect or insufficient supervision; trafficking; or commercial, transactional, labor, or other exploitation resulting in actual or potential harm to the child's health, well-being, survival, development, or dignity. It includes, but is not limited to: any act or failure to act which results in death, serious physical or emotional harm to a child, or an act or failure to act which presents an imminent risk of serious harm to a child.

C. Physical abuse: Constitutes acts or failures to act resulting in injury (not necessarily visible), unnecessary or unjustified pain or suffering without causing injury, harm or risk of harm to a child's health or welfare, or death. Such acts may include, but are not limited to: punching, beating, kicking, biting, shaking, throwing, stabbing, choking, or hitting (regardless of object used), or burning. These acts are considered abuse regardless of whether they were intended to hurt the child.

D. Sexual Abuse: Constitutes fondling a child's genitals, penetration, incest, rape, sodomy, indecent exposure, and exploitation through prostitution or the production of pornographic materials.

E. Emotional abuse or ill treatment: Constitutes injury to the psychological capacity or emotional stability of the child caused by acts, threats of acts, or coercive tactics. Emotional abuse may include, but is not limited to: humiliation, control, isolation,

withholding of information, or any other deliberate activity that makes the child feel diminished or embarrassed.

F. Exploitation: Constitutes the abuse of a child where some form of remuneration is involved or whereby the perpetrators benefit in some manner. Exploitation represents a form of coercion and violence that is detrimental to the child's physical or mental health, development, education, or well-being.

G. Neglect: Constitutes failure to provide for a child's basic needs.

[END OF PROVISION]

XXVI. PROHIBITION ON ABORTION RELATED ACTIVITIES

Applicable to all

The Recipient agrees that none of the funds provided by this award shall be used to issue grant funds to lobby for or against abortion. The recipient agrees that none of the funds provided by this award shall be used to pay for the performance of abortion as a method of family planning or to motivate or coerce any person to practice abortions.

[END OF PROVISION]

XXVII. PROHIBITION OF ASSISTANCE TO DRUG TRAFFICKERS

Applicable to all

POA reserves the right to terminate assistance to, or take other appropriate measures with respect to, any participant who is found to have been convicted of a narcotics offense or to have been engaged in drug trafficking.

[END OF PROVISION]

XXVIII. PROHIBITION ON THE USE OF ANTI-TRAFFICKING FUNDS TO PROMOTE, SUPPORT, OR ADVOCATE FOR THE LEGALIZATION OR PRACTICE OF PROSTITUTION

Applicable to all

"Severe forms of trafficking in persons" means

A. sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or

B. the recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

None of the funds made available under this award may be used to promote, support, or advocate the legalization or practice of prostitution. However, this prohibition does not preclude assistance designed to ameliorate the suffering of, or health risks to, victims while they are being trafficked or after they are out of the situation that resulted in such victims being trafficked.

[END OF PROVISION]

XXIX. COMPLIANCE WITH REGULATIONS.

Applicable for all USG funding

The Sub-grantee shall comply with all laws, rules, procedures and regulations concerning U.S. Government grants and Prime Awards as they may apply to this Agreement, including but not limited to, 2 CFR Part 200 – Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards (also known as Unified Guidance on Grants and Agreements); 2 CFR Part 200 Subpart E - Cost Principles; and applicable to USG standard provision with the corresponding federal agency.

[END OF PROVISION]

XXX. REMEDIES FOR NONCOMPLIANCE.

If a Sub-grantee fails to comply with Federal statutes, regulations or the terms and conditions of a Federal award (see 2 CFR 200 Uniform Guidelines: https://www.gpo.gov/fdsys/granule/CFR-2014-title2-vol1/CFR-2014-title2-vol1-part200/content-detail.html), the Federal awarding agency or pass-through entity may impose additional conditions, as described in 2 CFR 200.207: https://www.ecfr.gov/cgi-bin/text-idx?node=se2.1.200_1207&rgn=div8 Specific conditions. If the Federal awarding agency or pass-through entity determines that noncompliance cannot be remedied by imposing additional conditions, the Federal awarding agency or pass-through entity may take one or more of the following actions, as appropriate in the circumstances:

A. Temporarily withhold cash payments pending correction of the deficiency by the Sub-grantee or more severe enforcement action by the Federal awarding agency or pass-through entity.

B. Disallow (that is, deny both use of funds and any applicable matching credit for) all or part of the cost of the activity or action not in compliance.

C. Wholly or partly suspend or terminate the Sub-grantee award.

D. Initiate suspension or debarment proceedings as authorized under 2 CFR part 180 and Federal awarding agency regulations (or in the case of a pass-through entity, recommend such a proceeding be initiated by a Federal awarding agency).

E. Withhold further Sub-grantee awards for the project or program.

F. Take other remedies that may be legally available.

[END OF PROVISION]

ANNEX G
OTHER MANDATORY PROVSIONS (USDOL)

The below provision is incorporated in its entirely to this award.

U.S. Department of Labor Management Procedures & Guidelines OTLA
https://www.dol.gov/sites/dolgov/files/ILAB/MPG-2021-OTLA_Final-Oct-7.pdf

Signature Certificate

Reference number: KKA4G-NFRDZ-PN7TB-4MPN3

Signer	Timestamp	Signature
Macarena Jimenez Email: mjimenez@partners.net Shared via link		Macarena Jimenez
Sent:	07 Jun 2023 14:49:00 UTC	
Viewed:	12 Jun 2023 22:02:11 UTC	IP address: 190.104.176.93
Signed:	13 Jun 2023 21:00:47 UTC	Location: Asunción, Paraguay
Jane Hwang Email: jhwang@sa-intl.org		
Sent:	07 Jun 2023 14:49:00 UTC	
Viewed:	26 Jun 2023 16:38:19 UTC	
Signed:	26 Jun 2023 16:40:00 UTC	
Recipient Verification:		IP address: 144.121.219.74
✔Email verified	26 Jun 2023 16:38:19 UTC	Location: New York, United States
Louis Vanegas Email: lvanegas@sa-intl.org		
Sent:	07 Jun 2023 14:49:00 UTC	
Viewed:	26 Jun 2023 17:58:55 UTC	
Signed:	26 Jun 2023 18:02:09 UTC	
Recipient Verification:		IP address: 144.121.219.74
✔Email verified	26 Jun 2023 17:58:55 UTC	Location: New York, United States

Document completed by all parties on:

26 Jun 2023 18:02:09 UTC

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